COMMONWEALTH OF AUSTRALIA

Proof Committee Hansard

JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Inquiry into the 2025 federal election

(Public)

FRIDAY, 31 OCTOBER 2025

CANBERRA

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JOINT STANDING COMMITTEE ON ELECTORAL MATTERS

Friday, 31 October 2025

Members in attendance: Senators Colbeck, Hodgins-May and Mulholland and Mr Burnell, Ms Campbell, Mr Laxale, Mr Neumann, Dr Ryan and Mr Rick Wilson

Terms of Reference for the Inquiry:

That the Joint Standing Committee on Electoral Matters inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;
- potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;
- the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and
- the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;
- reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and
- the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.

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SEPASSPOUR, Mr Rumtin, Director of Policy and Strategy, Global Shield Australia

WHITTLE, Mr Devon, Australia Director, Global Shield Australia

Committee met at 09:00

CHAIR (Mr Laxale): I declare open the public hearing of the Joint Standing Committee on Electoral Matters for the inquiry into the 2025 federal election. In accordance with the committee's resolution of 4 August 2025, this hearing will be broadcast on the parliament's website and the proof and official transcripts of proceedings will be published on the parliament's website. I remind members of the media, those who may be present or listening on the web, of the need to fairly and accurately report the proceedings of this committee.

I now welcome representatives of Global Shield Australia to give evidence today. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you to make a brief opening statement before we proceed to discussion.

Mr Whittle: We thank the committee for this opportunity to appear today. Global Shield Australia is an independent non-profit organisation dedicated to strengthening Australia's resilience to global catastrophic risk. We have a particular focus on democratic resilience, which is why we have an interest in this inquiry.

While we think Australia's electoral system performed very well in 2025, we are concerned that that success should not make us complacent. The 2025 election was held against the backdrop of severe natural disasters and early forms of AI misinformation campaigns. We can be thankful that the worst-case scenarios didn't materialise; however, we should prepare because next time we may not be so fortunate.

Our submission to the inquiry focused on two key areas. The first was the need to strengthen Australia's capacity to conduct elections during disasters and crises. The second was the need to safeguard our elections and our democratic system from the impacts and misuse of rapidly advancing AI technologies.

In relation to running elections during disasters and crises, in 2021 Australia's electoral laws were amended to ensure the electoral commissioner was able to respond to emergency situations, and we think that was a good first step, but, as with many legal powers that are on the books, it is critical that these are reviewed and stress-tested to ensure they remain fit for purpose and that we actually know how we will be using these effectively in a crisis. We also think it's critical that these plans are communicated to the public so that the public can understand what the plan is when things go wrong and are not taken by surprise.

In relation to AI, I think we are all familiar with the more immediate concerns around deep fakes, misinformation and influence campaigns, but one of the issues that our submission highlights is a more insidious threat from AI models, and that is their ability to subtly shape political views, often without users even realising that this is taking place. So, to address the AI risk, we have a number of recommendations in the submission, but I will just highlight three briefly in this statement.

First, we think there is a real need for more transparency from AI companies and from the social media platforms that publish AI generated content. Second, there is a definite need for more AI literacy and digital literacy amongst the broader Australian community, so they can critically assess this content. Third, we need mandatory guardrails for AI, including for its use in electoral settings, and these should be accompanied by monitoring and mandatory reporting obligations so that the government's aware when things go wrong, when people are hurt and when there is adversarial misuse of these systems.

To conclude, for over a century Australia has had a very strong democracy, and we have stayed strong because we have been able to adapt to modern challenges. Whether it has been secret ballots, preferential voting or compulsory voting, Australia has been a world leader. We think that, as we go into this new era of uncertainty and volatility, we are going to need to continue this leadership, and that Australia needs to adapt and change to remain a strong and vibrant democracy in increasingly challenging circumstances. Thank you, committee, and we welcome your questions.

CHAIR: Thanks, Devon; thanks, Rumtin. I'll start off with a few questions and then I will hand over to the deputy chair. You mentioned in your statement that, at the 2025 election, you saw some early forms of AI disinformation. Did you want to expand on that? What are some examples of what you came across as Global Shield?

Mr Whittle: In Australia, as I said in the introduction, we were thankful that we didn't see a massive campaign, and the AEC concluded that they weren't concerned that AI misinformation undermined our fair and

free electoral vote. What we did see, of course, was the Russian misinformation attempts to poison chatbots. To give you some background as to how that operates: large language models, AI systems, are really dependent on the training data that they ingest, and what was seen earlier this year was Russia seeding, across the internet, Australia-specific content that they were trying to use to influence the outcomes of these large language models. Thankfully, in Australia, that didn't seem to have a direct effect, but we can certainly see that this could be an issue in the future—either the poisoning these large language models or more direct campaigns around deepfakes and misinformation on social media and other places.

CHAIR: That goes to your point about those subtle ways that chatbots can influence voters. If there's large-scale poisoning of it, it filters downstream into a search term—'who should I vote for?' or something like that.

Mr Whittle: Exactly. On that point about the subtle influences, there are a number of ways that can arise. The first way is through the deliberate state based campaigns around poisoning training data. Even though you'd think you'd need to infect a substantial portion of training data, there was some recent research from Anthropic earlier this month that indicated it can be a very low percentage—250 documents in a dataset of over 16 billion parameters were able to influence the outcome of a large language model. So that's one way—poisoning the dataset.

The other way is not even being aware when they could construct a model, because obviously there's no political neutrality in the real world. Everyone has a point of view, and models will have a point of view. So it could be unintended bias.

The third way is through something called a system prompt. For all the large language models, when a user engages with it and they send their prompt, along with that goes what's called a system prompt, which the modelmaker embeds into that prompt. We saw, earlier this year, that slight changes to system prompts can actually have large output changes for the model. You may be aware of Grok, which, earlier this year, was starting to generate some very offensive material through its online responses, and that was linked partly to changes to the system prompt, which influenced its output.

CHAIR: How do you propose the AEC or the Australian government regulate that? You've suggested some guardrails. How does that work when these large language models are often based in other jurisdictions beyond our reach?

Mr Whittle: This is a great question that comes up a lot in our conversations, particularly in Australia—if people say, 'We're just a middle power; we're not Silicon Valley,' et cetera. There are a number of ways to address that. The first is—we're not alone. Other countries are moving. California is moving, which is where these companies are based. The EU has obviously moved. Malaysia and Vietnam are moving to put in place measures. India recently announced—

CHAIR: In what way? How are they moving?

Mr Whittle: Malaysia and Vietnam, earlier this month, released draft legislation modelled on the EU AI Act, which included regulations around high-risk systems and transparency. We see, in our own region, countries moving. India, earlier this month, also released a bill around deepfakes and labelling on social media, to require companies to put provenance labels on this material. So the first point I'd make is we're not alone, and, when we work with international partners, we can create that common base to attack this problem.

The second point I'd make is there are measures that we can put in place that will directly benefit Australians now, even if the companies aren't located in Australia. We're thinking about things like transparency as a bare minimum. Knowing what is going into these models and having them disclose what safety measures they put in place are good first steps, because then we can evaluate whether these have been effective or whether they're doing enough. Those are two early ideas for Australia, and there are some other ideas, which we have in our submission, around the AI regulatory space more generally.

CHAIR: The AEC has stated that it has limited powers to investigate or take action if a person or a group seeks to disrupt an election using AI. Are you aware of powers that other electoral commissions have across the world? What powers are you proposing the AEC have?

Mr Whittle: This was one of the points we were trying to embed in our submission. Maybe it wasn't as clear as it could have been. This isn't just an AEC issue. The AEC has a critical role, and it performed, as it always does, excellently. In a previous life as a public servant, I worked with the AEC on some electoral matters in PNG, and they're an amazing institution, but we can't expect them to do it all. Particularly on this issue of the subtle manipulation of models, this may not be an AEC issue. This is more an issue of the regulation of those models, making them transparent and making sure there's monitoring and reporting around them so that we know what's happening and so users can say, 'I talked to this model and it gave me this very strange answer around some

conspiracy theory,' or, 'It said that I can't vote.' There needs to be a way for people to be able to communicate that to government. So, in direct answer to your question, it may not be that the AEC needs new powers, although it may in some other areas. But we think we need to have DISR and other institutions put in place some mandatory guardrails around how they are developing the tools in Australia.

CHAIR: I have one last question. In the AEC submission they identified that there were 130 new single-issue or limited-issue motivated groups or individuals. They are new entrants in the space. We have started to receive submissions and evidence that some of those new participants were behind some of the disruption and physical security things that were prevalent in the 2025 election. Armed with AI and left unchecked, what impact do you think those new entrants or single-issue entrants—entrants that don't have electoral accountability—could have on our electoral process?

Mr Whittle: This is quite a scary prospect in some ways. There is that long term between elections—the off-season, so to speak—feeding that discontent and lack of cohesion in Australian society. That's very concerning. But, then, in the direct electoral period, what we saw, for example, in Romania last year was the need to rerun one electoral process because of deepfake and misinformation campaigns. We are already seeing the direct impact in other jurisdictions.

CHAIR: What was that deepfake campaign?

Mr Whittle: It was a Russian influenced campaign.

CHAIR: So it was just a third party that wanted to disrupt—

Mr Whittle: Yes. You can easily imagine if the electoral system is so undermined by these campaigns that it demands a rerun, you need to think about what you have in place to make sure that the vote is free and fair and people are properly informed.

CHAIR: Thank you.

Senator COLBECK: I'd like to come off the back of the questions from the chair. Your evidence so far focuses very much on the large language models and the chatbots. But what about the utilisation of images, for example, which can be very, very powerful? We saw in Tasmania at the last federal and state elections the use of AI generated images by a group clearly to create a perception of something that actually hadn't happened. How do you deal with those particular circumstances? In my view, it did move the community at the election. That was related to the salmon industry. There were advertisements created by anti-salmon groups that utilised AI images. They were clearly not real. They were even carried by major newspapers. How do we deal with those things, because they are going to become more of a reality? But how do we also do that so that legitimate campaign tools can be operated properly?

Mr Whittle: That's the key in this space, I think. We don't want to regulate in a way that impinges upon the freedom of political communications and prevents people from engaging in legitimate political discourse. From our perspective, there are probably three elements to how Australia should be responding to that issue. The first is at the AI-model level. Some of the more responsible AI models developers put in place restrictions on their models during, in particular, electoral periods to prevent the generation of content using political figures or political issues. So when you ask Gemini to generate an image, it will say to you: 'Sorry, I can't do that. It goes against my terms of service.' That's one method. It's making sure that, at the model level, these things are being appropriately controlled.

The second way is through transparency, as I said. It's making sure that, when these things are social media, social media companies are labelling them or there's an embedded watermark so that it's very clear for mainstream media that: 'No, you can't just copy and paste this image. It is an AI generated image. Don't spread it further.' Then the third way is the digital literacy issue.

When people are engaging with this content online, we do need to ensure that they're able to engage in a sophisticated way. We know the AEC has its Stop and Consider campaign, which was very effective and, in its reporting from the 2025 election, it was very positive about it. Our concern with it is that it does seem to lack funding. Particularly across the electoral cycle, it needs more support and resources. We'd look at how much the government as a whole spends on advertising campaigns. It's in the $130 million to $230 million. Stop and Consider—there aren't precise figures. But we're assured that it's far less than a percentage of that amount, so investing in it is a way to help guard against the ability for it to actually have an impact in the electorate.

Senator COLBECK: You mentioned the social media organisations taking some responsibility too. How do you manage that in the circumstance where there's—I'm aware of evidence where they're, in some circumstances, politically playing the game too. For example, I was in Taiwan last week and I heard that the ruling party, the

DPP, has been deplatformed from TikTok. How do we manage that sort of thing in our environment or jurisdiction?

Mr Whittle: That goes back to the point about not wanting the government to be involved in what is legitimate political communication, which is why on the social media side what we proposed was more about the labelling and provenance issues—so you can identify that it's not real content rather than trying to judge the political salience or reality behind it. In other systems, such as Canada, similar to our electoral integrity taskforce—which I know you're talking to later today—they have a protocol around their elections where a group of public servants and senior offices are able to evaluate campaigns as they happen and decide if the government needs to issue a formal response to it. That might be another method to consider: how much we engage. On the Canadian model, what is attractive about it is the level of transparency we see in Canada. So, after the election, you have very detailed reports from this protocol group that they've set up along with what's called the security and intelligence taskforce on the election. They also have a very fulsome report.

This is a bit off your question, sorry, but, to finish this point, what we've examined in Australia is we do have a lot of great reporting from the AEC and its report on the 2025 election was quite good. It is a little bit backwards-looking and focused on what happened in the election—which makes sense, as it was meant to do—but, for example, if you compare the 2022 AEC report with 2025, in 2022 the issues were COVID and a bit of misinformation and disinformation concerns et cetera. In this report there's a little bit of that, but certainly not a focus on how did we succeed and how did we respond. There were a lot of other issues they were talking about. So being able to have more fulsome, public reporting about this and disclosure of what the government's doing, I think, would help to increase the confidence in our responses.

Senator COLBECK: In terms of public literacy with respect to this, a lot of information that is published is almost focused at making an impression at a glance. So how do we, as part of our broader processes, deal with those sides of things so that people will understand or see in that glance and there's a recognition of it from the community with respect to the use of the technology?

Mr Whittle: I think one of the most effective ways that we've seen—and from the AEC as well, we've heard—is what's called prebunking, which is the pre-exposure of people to misleading content, what it looks like and the sorts of themes that these groups will try to drive. It's often a really effective way to make people stop and think when they see the real thing. So, if you warn people: 'Look at this image. This is a typical example of a misinformation campaign. It's going to try to make you angry. It's going to try to make you disaffected. It's going to try to make you worried about other groups of people,' then it's flagged in their mind. Then, when they see a real piece of misinformation on social media, they can think: 'Is this real? How much should I trust this, because I've seen this in the past and know that this can be a dangerous area to be looking at.'

Senator COLBECK: Thanks.

CHAIR: Senator Hodgins-May.

Senator HODGINS-MAY: Changing slightly towards the impacts of climate, based on your research, how exposed do you think Australia is to climate disruption affecting our elections—for example, bushfires or cyclones? How ready are we to manage elections in those circumstances?

Mr Whittle: I'll pass over to my colleague, Rumtin.

Mr Sepasspour: Overall, I think the 2025 election was an example. It snuck right in between two major natural disasters, either of which could have had, obviously, a great impact on the ability of Australians in those locations—in New South Wales and Queensland—to actually exercise their vote. So we definitely believe that Australia is highly vulnerable. As part of the 2021 inquiry JSCEM conducted into emergency situations, the AEC was given those additional powers. If there's a national emergency declaration but it's below that threshold, there might be challenges in terms of exercising that.

Even if those powers are useful and effective, they've never been tested. They've never actually been exercised in any way—both the AEC powers and the national emergency declaration powers—so we don't know if they will even work in the moment or, especially, in the context of misinformation. If something happens and the AEC has to pull that trigger, with justification and with the full process, how people access that information and how they interpret that information, how those things come together, is going to be a real problem. It's not clear if the government has mapped that out, planned that out, and is ready to deliver on that, and if the nation is ready to accept that.

Senator HODGINS-MAY: Following on from that, you talked about climate change as a compounding democratic risk. Would you say that the climate crisis is now directly affecting the fairness and accessibility of

our elections—potentially, for young people, disabled people and elderly people being able to access voting booths to cast their vote?

Mr Sepasspour: This is a great question that goes to a broader point. The global threats that we face—climate change, geopolitical tensions and artificial intelligence—have a compounding effect on our democratic processes and safeguards in general, not just in elections. How do the Australian people engage and participate in the political and policymaking processes? How are they able to raise their voices? How are they able to form groups and communities and communicate, especially with information bifurcating people? People get into their subgroups, and they feed themselves the information that they believe in. So I think we're seeing climate change and other global threats making Australians more insular in some ways and not allowing us to have a more productive national conversation. Even outside of the electoral context, just in a broader, democratic context, these global threats, I think, are creating conditions for us as Australians not to have as vibrant a democracy as we think we have.

Senator HODGINS-MAY: From your research, are there some practical examples around that disenfranchisement?

Mr Sepasspour: I'd need to come back to you on that—not off the top of my head.

CHAIR: You can take it on notice.

Senator HODGINS-MAY: Yes, that's fine. I've got lots of questions, but I probably will do one more because we're low on time. I could have you here all day! Has Global Shield looked at how other countries are adapting their electoral systems to account for climate change, and are there lessons that we could be taking from them to build resilience?

Mr Sepasspour: We haven't specifically, but we can also come back to you on that.

Senator HODGINS-MAY: Thank you so much.

CHAIR: Mr Neumann, do you have any questions?

Mr NEUMANN: I want to raise the issue of below the threshold, which you mentioned before. In circumstances in my regional and rural electorate, I've seen the AEC adopt on the ground a very flexible approach when there have been major storms, with agreements for polling-booth workers to go home and allowing how-to-vote cards to be available to voters, for example—arrangements which really seem quite odd. I'm wondering whether those powers and that decision-making have a legislative basis behind them in terms of the operation of the AEC on the ground.

Secondly, when it comes to the power of the AEC officials on the ground, we've seen a rise in physical and verbal confrontation at polling booths. Do those presiding officers have the powers they need on the ground as well?

Mr Sepasspour: To be honest, that's not something we've directly looked at at the ground level. At the macro federal level, those powers are there for the AEC, the commissioner, to make those decisions about when certain processes need to be adapted or changed or delayed as a result of some national emergency or crisis. So those powers are there at the commissioner level. We'll need to take away—if you'd like for us to come back to you—what the powers of the individual electoral officers are at the local level.

Mr NEUMANN: That would be good if you did that. COVID happened, for example. In Queensland there were local government elections, state elections and a federal election all within a short period of time during COVID. The Electoral Commission of Queensland and the AEC really had to adapt quickly, and I've always wondered whether those powers were there to adapt—whether it's climate change. But it's below the threshold, to use your words. It's never been tested, so I'm interested in what you've found.

Mr Whittle: I think this goes to the point we raised about transparency, as well. I'm not familiar with exactly what happened in Queensland, in your electorate. If people are aware that these powers exist and this is how they're used, that will often help to ameliorate those issues around whether you were actually allowed to do that, which can then lead to conflict and disagreement with electoral officers.

Mr NEUMANN: I'll just finish on this note. You've given us—to use your word—the macro level, in terms of a declaration. Can you also look at the micro level: on the ground, operationally, does the AEC have the power in flexible circumstances, or are they just winging it in terms of the decisions that they make on the ground when there are storms, bushfires and climate change issues?

Mr Sepasspour: We'll take that on notice.

CHAIR: Ms Campbell.

Ms CAMPBELL: Thank you very much for your submission. I want to start with climate change. The CSIRO and others have indicated that it's regional communities that are most impacted by climate change. Do you agree with that assessment? And, if that is the case, do you agree with the idea that access to participation from a democratic perspective is most likely, in the context of climate change, to impact on regional communities?

Mr Sepasspour: I think our view would be that the impacts of climate change—it's hard to determine who gets impacted more or less, but it's definitely uneven. Certain regional communities will be more greatly impacted when they have a lack of access to emergency services, particularly in a natural disaster. At the same time, cities have been greatly impacted by cyclones, flooding and those sorts of aspects as well. Often the challenge becomes that the emergency response needs to be tailored to the location that it's at. A response in an urban environment is very different, especially if there needs to be mass delivery of food or water or fuel. That's a very different proposition to the impact in regional communities. More generally, regional communities also get impacted due to the fact that the infrastructure might not be there and the services might not be as available as in the cities.

There's a chronic impact across the board, which particularly hits regional communities, but then stressors like natural disasters do potentially more greatly impact urban areas. I think, therefore, that potentially changes the impact on the electoral process. If there is a cyclone or a flood that's hitting a city, many more people are potentially going to be impacted by that, whereas in regional communities that might not be the case. How do we manage postal votes or other mechanisms that can be used? That might be less of an issue, or at least a different issue, in a regional community. I don't want to say one gets more or less, just that it is a different proposition, at a chronic and stressor level, how we handle climate change specifically and its impact on elections, depending on the location.

Mr Whittle: Just to add to that, another focus that we work on is security of critical infrastructure. We engage with Home Affairs in those processes. As we saw recently, for regional communities this is a key issue. What critical infrastructure is there and how will it respond in a natural crisis caused by climate change or other issues? Do we have the right risk management in place, and are the critical infrastructure operators and owners focussed on the difference between regional and city areas? When a crisis hits a city there's often a bunch of infrastructure that can come into play to help it respond. Perhaps in regional areas that won't always be the case and so we need to make sure that we have backups. Government is there to support where the private sector isn't really responding appropriately.

Ms CAMPBELL: I'm from Queensland. It's difficult to get mail into certain remote areas of FNQ at the best of times, let alone when they might be cut off. Could you talk a little bit about the impact of climate change in regional communities through a democratic lens. In terms of the practical ways that you would resolve it, it seems more of a tactical challenge as to how you get people on the ground to have a vote.

Mr Sepasspour: I'll briefly mention the flip side of the technological impacts in terms of the harms that we've been talking about. The flip side of that is the accessibility that it might provide. There might be technological solutions to improving democratic participation in electoral processes as a way to mitigate the fact that there might be physical challenges in getting to certain populations during an election period. Technology might be part of a solution set, although we've mostly been talking about technology as part of the problem as well.

Ms CAMPBELL: In 2020, COVID happened, and we in Queensland had a number of elections falling right into that really challenging period. There wasn't a road map for that. Who has one globally? Who does it best in terms of actual response when there is an external factor?

Mr Sepasspour: Is that specifically in the context of elections or just in general?

Ms CAMPBELL: I mean in the context of elections and, particularly, of climate change, but it could also be any other external event.

Mr Sepasspour: The countries that are on the front line of democratic resilience are the ones that we can look to. Taiwan is a good example, particularly in the context of elections and information campaigns. The Nordics, particularly Finland, as well as Germany have digital literacy and civic literacy programs and campaigns. The Baltics do as well. They've had to be on the front line in the NATO context, so those countries are doing particularly well.

The Strengthening Democracy Taskforce report that the Department of Home Affairs put out last year dedicated a good overview to what other countries are doing. In fact, that was our concern with that report. It didn't go to the next level and say: 'Okay, what are the lessons we can learn from other countries? What specifically should we do here?' There's no one country that's doing everything right, but there are pockets of activity on misinformation, foreign influence campaigns and the COVID context. We can pick up lessons from different countries.

Mr Whittle: To add to that: Australia has the Australian government crisis management framework, which is meant to set the framework for how we respond to a range of crises and emergencies. From memory, I don't think elections or the AEC get a mention in that. We have COMDISPLAN and a range of other plans in place. What do we have in the election space? We just need a bit of transparency and, perhaps, development.

CHAIR: Dr Ryan.

Dr RYAN: Is it your position that Australia might benefit from a compulsory form of civics education for young people?

Mr Whittle: Certainly we think more needs to be done in schools. This is a long-term process. Indeed, my kids' local school is grappling with it generative AI generally and how we integrate it into our curriculums. Yes, there needs to be an element of civics and digital literacy, as we said in our submission. The AEC obviously does a great job with its learning centre here in Canberra and its campaigns around the election, but, as we said earlier, we think far more can be resourced into those efforts to make sure that Australians are getting education around this.

Dr RYAN: Do you have a position on the voting age and whether or not it should be lower?

Mr Whittle: No, that's not really part of what we look at.

Dr RYAN: Thank you.

CHAIR: Ms Mulholland.

Senator MULHOLLAND: Thank you to our witnesses for joining us today. We heard a little bit of evidence from the AEC at our last hearing when I asked them about the content of election material, particularly information that's given to voters, information displayed at polling booths and information sent out to voters. I asked whether or not the AEC takes a view or takes any action about information that is blatantly misinformation, incorrect information or dangerous lies. They said to us that they don't really have a will about it. As long as the material is conforming in an authorisation sense—it's got the right authorisation—they don't take a view about the content of that information. They specifically said freedom of speech, the voters get it right and all that kind of stuff. With the rise of AI and the potential risk of seeing the voices and likenesses of politicians used to create fake videos and fake voicemails that go out to voters, do you have any thoughts about extra protection that we could put into the Electoral Act to stop this? Does an authorisation need to say that it has been certified as not having been digitally altered in any way? Are there any protections that you think we should be thinking about to protect against this?

Mr Whittle: I think this goes to the heart of the difficulty of this issue. I don't think Australians want government to be the arbiter of truth in election communications, and so that's a really tough issue to manage. I think the measures that we were proposing around safeguards at the AI model level, combined with labelling so voters know that what they're seeing is not real and then education are good, no-regrets policies with the least impact on the free-speech element.

The other thing I would say is that a former AEC electoral commissioner, Rogers, referred to AI creating volume, velocity and a question of veracity around election communications, and those are the sorts of issues that we need to grapple with. The measures we proposed would help with both volume and veracity around it. By 'volume' I mean that, by stopping the models from producing this material, you're going to get rid of the low-hanging fruit—people who just want to create trouble—and veracity with labels can help people understand a thing isn't real and has been altered. But it is a very difficult problem to make sure Australians can still communicate freely and express their views even if some people might think they're wrong or that they're misguided.

Senator MULHOLLAND: When you say 'labelling', how would that operate in practice? If it's not required for a political party or candidate to do it, they're probably not going to do it. How are we going to require people to label it?

Mr Whittle: There are two elements to labelling in our submission. The first is around explicit labelling, particularly on social media platforms. We think that's an easy, low-hanging fruit way to attack this problem. If you go on, for example, X at the moment, you'll often see community notes attached to certain posts, which gives you some context around what that post says. In the past, Twitter had alerts for issues of veracity. What we're proposing is not about veracity but more about the provenance of the material. That's the first way: explicit content labelling online as a potential option.

The other way is for the models to embed what's called provenance signals within the material they generate. When a model generates an image or a video, it's possible for them to put invisible signals within that content so

that, when an investigator, regulator or media source downloads that image, it can then run it through a system and say, 'Actually, no; this has been flagged as AI generated material.' That's an invisible signal which will help regulators and the mainstream media better engage with the material.

Senator MULHOLLAND: Thank you.

Mr BURNELL: In all fairness, how do you practically implement a restriction on this type of material in the last 24 to 48 hours of an election cycle, when people are most engaged around intent to vote and at the same time most susceptible to making impressions from potentially misleading communications? There is a danger window whereby, purely because of a lack of time, intervention by third party becomes very hard to execute.

Mr Whittle: That's right. I think it's fair to say that none of our proposals are silver bullets. There are some issues that are very difficult and will take a lot more work to work out how to resolve. What we're proposing, as I said before, is for the low-hanging fruit—things we should get going ahead and implementing. They may not address all the issues, including that last 24-hour window. There may be other measures that need to be considered. It could be things like the Canadian protocol, where you have an authoritative statement from government when they see a particularly concerning misinformation campaign. And I think we do need to distinguish between potentially state backed or other large-scale, sophisticated campaigns where obviously government needs to be coming out and saying, 'Warning: this is happening,' compared to, maybe, individual lone wolves having some fun online as they see it but actually creating issues. We maybe need to treat those in different ways.

CHAIR: This is the last question from me, and then we'll close. We've been asked to look at potential reforms to limit domestic and foreign interference. From your perspective, would you consider a disinformation campaign using AI a disruption to our electoral process?

Mr Whittle: Yes, 100 per cent, and we've seen that in other countries already, as I referred to earlier.

CHAIR: That's pretty clear cut. Thank you. I've just got to say some words before you go. Thank you for your attendance today! If you've been asked to provide any additional information, would you please forward it to the secretariat by Friday 14 October 2025. You will be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors. We really appreciate your time. Would you be open to coming back or further questions?

Unidentified speaker: 14 October has passed.

Unidentified speaker: I think that would be November.

CHAIR: Oh, 14 November—that's right.

Mr Whittle: We'll do our best!

CHAIR: 14 November—apologies.

Senator COLBECK: When you invent a time machine, let us know.

Mr Whittle: That's right!

CHAIR: Yes, we might ask you to come back if that's of interest.

Mr Whittle: That would be great, thank you.

CHAIR: Thank you.

Mr Whittle: Thank you so much, Chair and committee. We really appreciate it.

RUBENSTEIN, Professor Kim, Private capacity

[09:41]

CHAIR: Can I please ask a member to move that the submission from Professor Rubenstein be received and authorised for publication.

Senator COLBECK: It is so moved.

CHAIR: Thanks, Deputy Chair. I now welcome Professor Kim Rubenstein to give evidence today. Do you have any comments to make on the capacity in which you appear?

Prof. Rubenstein: I'm appearing in my own capacity as a professor of constitutional law and citizenship law, as a former candidate for the Senate for the ACT and also in my experience assisting people to consider running as a job-share candidate in the 2025 election.

CHAIR: Thank you. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. Professor Rubenstein, I now invite you to make a brief opening statement before we proceed to discussion.

Prof. Rubenstein: Thank you very much, Chair, and thank you to the committee for all of its work on a really significant piece of legislation. The Electoral Act is really core to our democracy and represents the expression of the constitutional requirements of sections seven and 24 of the Constitution for each of you to be directly chosen by the people and each of you to fulfil your responsibilities to the people. That's probably a core aspect of everything that this committee does and my comments to you this morning.

I thought I would give you a few personal experiences from my own time as a candidate that speak to the increase of aggressive conduct and deliberate obstruction and intimidating behaviour towards voters and political participants. I'm assisting you, probably, in matters that you are all very well aware of as candidates yourselves but from my own experience as a Jewish woman and as a candidate in the 2022 election and having been counselled before I even considered running to be thoughtful about the fact that, on both of those levels—being a Jewish Australian and being a woman—I may attract intense scrutiny. That's not scrutiny in the sense of appropriate scrutiny in relation to my policy platform but rather, perhaps, potential harassment and treatment based on my identity rather than on the policies that I was proposing.

I would actually say in a very positive way that those warnings were not played out or amplified in the way that people had warned me. I mean, I was always very conscious. There was one incident that did occur, and after that incident I did ensure that, whenever I was out in public, I always had someone with me. That was during the actual campaign. We had many corflutes along the various parkways, including Tuggeranong Parkway. Someone had not just got a spray can and put some offensive paint on it but had actually been home and printed out a couple of very antisemitic slogans and pasted them on the corflutes. Whilst that was very disappointing, it was within the ambit of what I'd been told to anticipate. What was actually positive was the intense outrage of everybody at the time. Each of the other candidates running made public statements straightaway that they were shocked that this had happened in Canberra and that there was no appetite at all for anyone to be treated in this way.

So, despite it actually happening, the outrage was, I felt, a reflection of the general public's lack of appetite for that sort of behaviour. It was a non-Jewish person who pulled over to the side of the road and called our campaign office. From that experience, to then compare it to the 2025 election—that was a very dramatically different environment. We saw direct antisemitic activity that unfortunately became not acceptable but a norm in practice.

I have my own personal views in terms of the role of the Voice campaign and how that unleashed a lot of groups in society who had been on the fringe who became more normalised. A good example of that would be that, at many of the 'no' campaign rallies, there were people who identified as Nazis on the sidelines. I would say that that was a bit of the tingling that led to a dramatically changed environment for the 2025 election.

My sense is that you are appropriately inquiring into how we manage that change. The public sentiment that responded very appropriately to what I experienced in 2022 has changed, and that's a broader issue about social cohesion and the ways in which we disagree healthily rather than in a very vicious and personal way. In many ways, from just listening to your questions on the earlier submission, I think a lot of what is at stake here involves attention to the electoral act as a subset of a much broader civics and citizenship education strategy that is so profoundly needed in Australia. I think the Voice referendum showed that. If only I could have sent every voter

my colleague James Blackwell's and my eight-part podcast series—*It's Not Just the Vibe, It's the Constitution*, some very basic, accessible material about our constitutional structure—to be able to discriminate between disinformation and proper reflections on a very important question.

In exactly the same way, at each election, if our citizenry were more engaged—and, Member Burnell, on your point that some of them only really pay attention in the last 24 hours, so you're dealing with people who have immense power as voters not necessarily being equipped sufficiently to truly be able to discriminate between the information they're being bombarded with. Of course, in this committee, that's not something you can do in and of itself in terms of recommendations, but it can build into the earlier review on civics and citizenship education, which I also made submissions on. I do think it's an Australian resident's whole-of-life pursuit, from entering the school system to the end of schooling—not just a single visit to Canberra and perhaps the opportunity of some civics and citizenship if you're doing those subjects in years 11 and 12 but a whole-of-life educational experience at each level along the way in your schooling so that, in age-appropriate and level-appropriate ways, we keep embedding in the consciousness of our citizenry that knowing about the frameworks where decisions are made that impact on your daily life every single day is absolutely fundamental to being a citizen. You need to know that so that, by the time you are a voter, some fundamental values and principles are embedded in you that assist you in engaging in this fundamental role.

CHAIR: I just have two questions. I'm sorry you had to go through that experience. It must have been awful. You talk about a new norm, and that's rightly something we're looking at. If that escalation continues of that type of behaviour, what do you think the impact will be on political participants, volunteers, voters, potential candidates and those who host polling booths in private places like church halls? What do you think the outcome will be long term if what we saw in 2025 stays the same?

Prof. Rubenstein: Very simply, it's a discouragement to become involved. If the consequence of being an active citizen is that you're putting yourself up for unhealthy behaviour, then that is a concern. There's the statement from a Jewish sage:

If I'm not for myself, who will be for me? If I am only for myself, what am I? And if not now, when?

You do have to be protective of yourself when making decisions about your active citizenship, and if it grows in a way that you know is putting yourself in harm's way or is more significantly so, then that is a discouragement. I'm not saying, therefore, we just have to accept that. It becomes more of an imperative to work out positive ways, not Draconian ways but positive ways, to change that in environments. And it is a balancing act between giving the Electoral Commission certain powers and capacities to report matters to the police and to bring in immediate support so that it is deemed not acceptable. But I guess it's also encouraging the rest of the population who are not tolerating that to be able to voice their resistance and feel comfortable in their resistance to that activity.

CHAIR: This is my last question.

Prof. Rubenstein: Yes, I have two other things I want to add.

CHAIR: Given your expertise in the Constitution, what's your opinion on the permissibility of three-year fixed terms?

Prof. Rubenstein: I read my colleague Anne Twomey's submissions, and I think it's probably straightforward, because I want to get on to two other issues. I affirm and support what she submitted in relation to that. Constitutionally speaking, there are limitations by virtue of what she referenced, there are practical ways you can set up a norm or expectation about the length of term of a parliament that would then have political consequences for anyone who choose—

CHAIR: If you broke the law.

Prof. Rubenstein: Exactly. I think that's a broader issue for parliamentarians, in terms of setting up standards broadly that may be changed, but creating a norm and an expectation where people see that as an appropriate standard or value, and then any change from that has to be fully justified. I might leave it there, because I do have two other significant points.

Senator COLBECK: Why don't I ask you a question that might lead you to those?

Prof. Rubenstein: Yes, great.

Senator COLBECK: Your submission talks about representation from the territories. Go ahead and put your thoughts there, but how might that be managed in the context of the entire parliament, because that's one of the terms of reference we're looking at?

Prof. Rubenstein: It is, indeed. So, unlike the need for constitutional change for fixed terms, the change to the Senate representation is a simple change to the Electoral Act. By virtue of the 1975 changes, the High Court's

decisions and the Senate territory representation act, which challenged and questioned whether it was constitutionally possible, the High Court determined that it was within the federal parliament's power to determine the number of territory representatives without that impacting on the nexus requirements. So this parliament could, if it chose to—and I know that politically it's unlikely—could give the Northern Territory and the ACT equivalent representation of 12. And, if one looks at the population of Tasmania, that's not an unfair thought for an ACT resident, like I am.

But I think—and this was part of my 2022 campaign, building on my earlier work of territory representation—the most straightforward and rational understanding that all voters would appreciate is that the ACT population has doubled in size since 1975, and, in the period from 1975 to now, after that was introduced, the states each increased their representation by two, from 10 to 12, in 1984, whereas we've seen no change.

A very straightforward way of doing it—and I have a bill that I drafted for this purpose during the 2022 campaign—is a simple amendment to four members at each election, so that you double the number of territory senators, which would enhance the representation of the ACT residents and would go some step towards changing what is a very unequal democratic experience. By choosing to come and live in the ACT from my home state, formerly in Dr Ryan's electorate, I have diminished the amplification of my democracy just by choosing to live here. It's not a bad choice, because I love living in Canberra, but I do want to amplify for the ACT a fairer representation.

I am conscious that the other recommendation from Senator Pocock and the Hon. Mr McMullan is to also consider changing the terms to six-year terms—for it to align with the states in relation to those terms. I certainly would not resist that. I think it's a bigger ask politically, but I think it's a fair ask and one that's rational, because senators have a different role to play than members of the House, as you all well know. A six-year term for a senator in a house of review is an equivalent responsibility. The ACT and Northern Territory senators are really treated like members of the House of Reps in their political responsiveness in terms of each of the elections, even if it's ultimately more fixed. I certainly would support that. I am aware—for members of the Labor Party in this committee—that the Labor Party did adopt it as a party platform, but it wasn't implemented for this election. I think any changes to the Electoral Act—it's a simple further change that doesn't require much in a legal or constitutional sense.

Senator COLBECK: I was going to ask you length of term, but you've dealt with that. Thanks.

CHAIR: Senator Hodgins-May.

Senator HODGINS-MAY: I'm also sorry for the experience that you endured during the election. I'm really sorry that you went through that. I was really interested to read about your job-sharing proposition, and I'm really curious to hear whether, in your professional or personal capacity, you have other ideas around how we might improve the diversity of parliament and make the job more suitable for people who have caring responsibilities or disabilities and who might be impacted by (1) running as a candidate and (2) being a politician.

Prof. Rubenstein: My motivation here is very much grounded in that constitutional understanding of representative democracy and the need for parliament to represent the people—it's that opening statement in relation to that link back to the people—and recognising that the Electoral Act is there to implement that need and that any structures that, in effect, prevent that from being fully fulfilled should be seriously scrutinised. Let me start with the job sharing, because—I think the legal adviser for the Electoral Commission is in the room; I don't mean to have my back to you in discussing this! In relation to what was the public statement of the AEC—in relation to that not being within the AEC's interpretation of the Electoral Act—that is obviously open for question and analysis.

There is currently a matter in the federal court which the AEC is a party to and is on hold. It does give me the opportunity to re-emphasise a point that Professor Twomey raised in her evidence last week in relation to any question about constitutionality, whether it be of the legislation or in the interpretation of the legislation. In it, she said that she had heard that there might be a case in relation to the constitutionality of the changes for political donations on the basis of the disproportionate support that it gives major parties as opposed to individual parties. That raises a question of whether their legislation is reasonably appropriate and adapted to the end that's being achieved. She mentioned that she'd heard that there might be a case, but she said:

There's that dilemma … How do you find the appropriate plaintiff? How do you fund the challenge? And how do you face the risk of adverse costs—which is always something that, when little people are trying to challenge big legislation, has to be taken into account because there are high risks involved.

I wouldn't even say 'little people'; I'd say it's your regular citizen, who has every right as a voter to question whether the interpretation of the legislation, or the legislation itself, is impacting properly, constitutionally, on their rights.

The case did actually have an opportunity to begin being heard, by virtue of a decision by the Electoral Commissioner for each party to bear its own costs in that first iteration before the election. That meant that the applicants, as citizens, were not subject to the same high risk, because there had been an agreement, and each of the lawyers acting for the applicants—the women's legal service for the ACT, all the barristerial team and I—were acting pro bono. They were providing an avenue for all Australians to test out whether job sharing is constitutionally valid and, more specifically, whether the Electoral Commissioner's interpretation is lawful.

Very sadly—that's my tone on it because, obviously, I'm supportive of this being tested out by the court—it's on hold in the Federal Court because that costs protection did not continue beyond the last election. The matter, which is in the Federal Court—No. 146 of 2025—has publicly available documents about the costs involved in going forward, which are estimated by the Electoral Commissioner and by the Commonwealth, who insisted on being joined in as a party, to be over $300,000. If you add it to the costs that are being shared with the court up to this point, you're looking at around $600,000 for the whole case to have been run, in terms of the cost to the Commonwealth and the AEC.

No matter what their personal earning capacity, a regular citizen's having to shoulder that on behalf of the citizenry in the event of the case not being successful, though having been a contribution to the community for knowing what the limits of the electoral act are when there is contestation, to me, should be a matter for this committee's concern. For any challenge under the electoral act, which is directly related to representative democracy, I think this committee could recommend that costs and protection for a bona fide applicant—you can't have vexatious people just wanting to challenge everything. But there would be a hurdle to show that there's an arguable case, which, of course, was what the Federal Court was asking of the AEC and the Commonwealth in this job-sharing case. It was agreed that this was an arguable case. Once there is an arguable case, then it is a live issue for every voter as to whether, for instance, they have the right to vote for a job-sharing candidate.

To reiterate, I do believe that job-sharing candidacies are one initiative that should be seriously considered. Perhaps another option, which is in my submission, is that this committee could set up a purpose inquiry into job sharing in parliament, to look at the legal and constitutional issues but also the practical issues in terms of how that would work. The two individuals who wanted to be the first nominated candidate had very public expression of how they would do that as a job-sharing candidate, but there would be very many ways of doing it. I think a committee looking at that issue would be one way of enhancing our documentary and thinking through alternative ways to have more diverse representation. The reason why it's more diverse is that there are so many people in the Australian community—we can look at the Australian Bureau of Statistics's statistics—who have to work part time. The range of life experience that comes from people who work part time, not to mention the other things that they do in their lives, that, in essence, would get brought into the parliament would be very healthy. You would diversify. Disability is another issue that is why some people can't work full time. I think, in that respect, it's a really important initiative that needs to be taken seriously.

My other point about it is to do with the culture of this parliament. With no respect to any of you who are here serving us, it takes a certain type of person to be attracted to committing in the way that you have each committed, and that narrows the pool. You are diverse—each human being is diverse—but it does narrow the pool of the life experience that can be brought into this parliament. Everybody is affected by the decisions of parliamentarians, so a broader range of life experience in that mix would be healthy.

There's also the concept of sharing power. I know that a lot of people have difficulty in getting their heads around that concept of shared power. Parliament itself, in terms of collective responsibility in cabinet, is an expression of shared power. The Governor-General represents the King of Australia; she is job sharing with the King of Australia. When he's in town, she doesn't fulfil her responsibilities. There are ways of sharing power that could also occur for parliamentarians in a way that would be healthy for democracy.

CHAIR: We might move on, as we are short on time. Ms Campbell?

Ms CAMPBELL: You talked about practical ways exist that you can use to set up norms with respect to the length of terms.

Prof. Rubenstein: Yes.

Ms CAMPBELL: Can you just take us through what those practical things would be.

Prof. Rubenstein: I guess that comes back to civic education. What is it that is positive about having longer terms, in terms of the impact on the quality of legislation? One of the current issues is the short-termism aspect of

politicians knowing that, in order to fulfil their policy objectives, they need another term to be able to do that, so their time is split between making sure they are electorally re-electable and putting their attention into it. So I am really—

Ms CAMPBELL: I was looking at your comment about, if you were going to institute longer terms, that there were practical things you could do, or practical norms that one could put in place, to make that possible.

Prof. Rubenstein: Within the Electoral Act, there are ways in amending the act to have an expectation of particular length of term without that actually being embedded in the Constitution. So it could be overturned because any parliament could seek to change that. But once you set it up within the legislative framework and then create an educational framework to talk about the norms of why that longer term is in the benefit of the voters, not just in the benefit of politicians, then for that sort of cynicism that we unfortunately see a lot of—that this is giving you more power to stay in longer—the education would be about how it is actually giving you as a voter more power to have an impact during the term of that politician because they would actually able to listen and interrogate and develop better policy. So it is a mix of changes to the legislation, as well as voter education.

Ms CAMPBELL: My final question is on the behaviours and the increase in aggressive behaviours. I, like the other member of the committee, am so sorry that you have felt that way. You have talked about those kinds of aggressive behaviours becoming more normalised. What do you think are the primary drivers behind that normalisation?

Prof. Rubenstein: How many hours do we have?

Ms CAMPBELL: Very few.

Prof. Rubenstein: Exactly! I do think partisanship and an intense partisanship have been amplified through a range of factors. I do think that the manner and the conduct of the constitutional referendum was unhealthy. I think bipartisanship—this is my commentary—is something that should have been encouraged as a priority in support of Indigenous Australians' fair claim, in my view, to rectifying what is fundamentally a racist constitution, in the sense that the way in which it was set up was an exclusionary framework, and that debate then unleashed the fringes of society that have always existed. There are diverse views, but leadership is about setting out standards where those fringes are seen as fringes and not the norm. So I think my real answer to all of this is to really increase civic and citizenship education so that that enhances people's standing, together with a lot more education around diversity being a positive to the Australian society; it is not a negative. We can learn to disagree in a way where we still respect the other person's right and place to be here and participating in a way where we appreciate it, even if we disagree with what it is that they are seeking to propose.

They are very big questions, but I think they are interrelated, and, if we were to enhance civic and citizenship education in a way that is creative, you would build in that social inclusion aspect to that education.

Dr RYAN: Can I just clarify, Prof. Rubenstein, it is your position that it would be in the public interest for us to legislate a cost-sharing arrangement so we could reasonably protect the democratic rights of individuals and small parties to challenge specific aspects of the Electoral Act?

Prof. Rubenstein: Correct.

Dr RYAN: That might include questions like job-sharing, or it might include challenges to the electoral donations reform that were put through.

Prof. Rubenstein: Indeed. It's so core. I think that, as a matter of all legislation, there's an element where the public interest should she encouraged, to ensure that the parliament is acting lawfully. But the Electoral Act is so core to every other piece of legislation. Who you get in there will determine who can then make the legislation that flows. It's providing a framework where that can be healthfully challenged—not vexatiously. When there are real matters of concern, there is an avenue. If there is a party, and you stay within the framework of our legal system, there has to be someone with standing, as this job-sharing candidate had set up, so that there is a direct consequence from the decision of the court. We're not asking the court for an advisory opinion on the electoral act; there's a real matter. But, if there is a real matter with an arguable case, then I think the joint standing committee should endorse that the parties who bring that to the court should not bear the risk of the costs of the Commonwealth if they're unsuccessful.

Dr RYAN: Sounds fair. Could I ask you—I asked the same question to Professor Twomey—what's your opinion about whether or not the recent changes to electoral donation reforms potentially constitute a challenge to the right of political expression of Australians?

Prof. Rubenstein: I think there are serious questions in relation to that question because of that very clear, disproportionate effect on different candidates, depending on whether you're a member of a party or whether you

are an independent or smaller party. There is also a difference, of course, between incumbents and new nominees. You can look at both myself and David Pocock at the 2022 election as new nominees. We had to each individually—we were not in any way connected during the campaign—find our own resources. It's on the public record in relation to Senator Pocock spending over a million dollars. I was able to raise $500,000, which was a considerable amount of money. But that's compared to over a million dollars, with Senator Gallagher also spending over a million dollars. That meant that the playing field wasn't even. That's not to say sour grapes on my part; it's just to show, literally, the difference. Yet, Senator Pocock has put on the public record how much less he had to spend at this election as an incumbent. All of those factors are relevant to the impact of the changes, and there is a serious question then of whether the object of transparency in public donations, which is a very significant question for us as a democracy, has been played out in a way such that all nominees get the benefit of that infringement on the freedom of political communication. That's what the court would be balancing. In principle, you shouldn't infringe on the right of people to discuss democratic issues. But, if there is some purpose that is seen as appropriately limiting that freedom, which transparency and enhancing democracy do, then the court will look at it and say, 'Is this legislation reasonable and appropriate to that end?' And, if there's anything that raises significant questions about the authenticity or the ends, then I think it is definitely arguable. Again, given it's definitely arguable, surely we want to live in a legal environment where parliament and the executive in particular don't have excess power by virtue of the fact that the ordinary citizen can't go to the court and challenge them, if there is a serious question.

Dr RYAN: Agreed; thank you.

CHAIR: That's it, I think. Thank you, Professor Rubenstein. If you've been asked to provide any additional information, please forward it to the secretariat by Friday 14 November. You'll be sent a copy of the transcript of your evidence and will have an opportunity to request corrections to any transcription errors.

ATKINSON, Mrs Lucinda, Acting First Assistant Secretary, Department of Finance

BELGROVE, Mr David, Assistant Secretary, Government Division, Parliament, Government and Honours Branch, Department of Prime Minister and Cabinet

CHICK, Mr David, Assistant Secretary, Counter Foreign Interference Policy and Coordination, Department of Home Affairs

GLEESON, Ms Kath, Acting Deputy Electoral Commissioner, Australian Electoral Commission

HECKSCHER, Ms Julie, First Assistant Secretary Regulatory and Legal Policy Division, Department of Foreign Affairs and Trade

JOHNSON, Mr Andrew, Chief Legal Officer, Australian Electoral Commission

LYNCH, Mr Michael, First Assistant Commissioner, Electoral Integrity and Operations Group, Australian Electoral Commission

McGUINNESS, Mrs Michelle, National Cyber Security Coordinator, Department of Home Affairs

McKEAG, Ms Susan, Assistant Secretary, Transparency Frameworks Branch, Attorney-General's Department

MARJAN, Mr Alan, First Assistant Director-General, Cyber Threat Intelligence, Australian Signals Directorate

NOYES, Mr Michael (Mike), Deputy Director-General, Intelligence Service Delivery, Australian Security Intelligence Organisation

OREO, Mr Stuart, Acting Assistant Commissioner, Electoral Integrity and Media Branch, Australian Electoral Commission

RYAN, Mr Nigel, Acting Deputy Commissioner, National Security, Australian Federal Police

SPENCER, Ms Ciara, Acting Assistant Commissioner, Customs Compliance and Enforcement, Department of Home Affairs

SWIERINGA, Mr John, First Assistant Director-General, Office of National Intelligence

URWIN, Mr Antony, Assistant Director-General, National Partnerships, Australian Signals Directorate

VANDENBROEK, Ms Sarah, First Assistant Secretary, Department of Infrastructure, Transport, Regional Development, Communication, Sport and the Arts

WOOD, Mr Joshua, Assistant Director, Electoral Policy, Grants and Governance Division, Department of Finance

[10:16]

CHAIR: Welcome. Although the committee does not require you to give evidence under oath, I should advise you that this hearing is a legal proceeding of the parliament and therefore has the same standing as proceedings of the respective houses. The giving of false or misleading evidence is a serious matter and may be regarded as a contempt of parliament. The evidence given today will be recorded by Hansard and attracts parliamentary privilege. I now invite you, Ms Gleeson, to make a brief opening statement before we proceed to discussion.

Ms Gleeson: Thank you for the opportunity to appear today and to make an opening statement. As chair of the board of the Electoral Integrity Assurance Taskforce, also known as the EIAT, I would like to make some opening remarks about the EIAT and the 2025 federal election. I'd like to start by expressing pride in the construct, especially as the new chair of the board for this federal election in my capacity as Acting Deputy Electoral Commissioner at the AEC, and in acknowledgement of the way the EIAT has continued to evolve.

In that respect, I thought it might be worth letting the committee know that organisational restructures and machinery-of-government changes have meant that we've welcomed updated representatives from some member agencies. I'm deeply grateful to all board members for their commitment and for being present today and thank the committee in advance if there are questions that we need to take on notice. I'd also like to take this opportunity to acknowledge and thank the dedicated taskforce members and the teams within our member agencies who work to uphold and strengthen electoral integrity. Their ongoing efforts are fundamental to the success of the EIAT and the confidence of the Australian public in our electoral processes.

The EIAT was established in 2018. Since then it has been in place for every federal election event, including three federal elections, all federal by-elections in that period and the 2023 referendum. Upon request we also provide assistance and advice to state and territory electoral commissions. Our purpose is to provide consolidated and coordinated information and advice to the Australian Electoral Commissioner on matters that may compromise the real or perceived integrity of a federal electoral event. Our focus is on assessing and remediating threats to the integrity of Australia's electoral systems and processes. These threats may be realised through cyber or physical security incidents, through foreign interference or through the spread of mis- or disinformation about the electoral process. The EIAT provides a whole-of-government information-sharing platform for its member agencies, which includes the National Intelligence Community and policy, operational and law enforcement agencies.

The EIAT is comprised of an operationally focused taskforce that is governed by the EIAT Board, with members representing the board here with you today. Importantly each agency undertakes their work on the EIAT as part of their existing legislated remits. Ahead of the election in January 2025 the EIAT published important information to help voters and candidates understand the electoral environment and the EIAT's role in helping to protect the integrity of the election. On 1 July 2025 the EIAT Board provided our post-event advice to the acting electoral commissioner on the integrity of the 2025 federal election. We were pleased to note that Electoral Integrity Assurance Taskforce agencies did not identify any foreign interference or any other interference that compromised the delivery of the 2025 federal election and would undermine the confidence of the Australian people in the results of the election.

The current electoral environment is particularly complex and changing, as you would appreciate. In our advice we also noted that, leading up to and during the 2025 federal election, EIAT agencies engaged with issues as they arose in the electoral environment, including the continually evolving digital communications environment, deteriorating physical security conditions and suggestions of foreign interference in campaign activities. We also noted in our advice that the Australian community played an important role in protecting electoral integrity—particularly as voters, candidates and other participants in the electoral process have become increasingly attuned to the electoral security environment. Chair, my EIAT colleagues and I welcome your questions and we look forward to supporting the committee.

CHAIR: Thank you, Ms Gleeson. I'd like to start with your definition of what interference would be in an election, because I think that could be varied amongst a lot of people. Could you set that out for us? What is interference and then, perhaps, what would be your definition of 'domestic interference' and 'foreign interference'?

Ms Gleeson: Definitions are important and it's a key factor that informs the contemplations of the EIAT. On the difference between foreign influence and foreign interference in particular, I might invite my colleague from Home Affairs to speak in a little detail about that. But, importantly, the EIAT was established to provide advice to the Electoral Commissioner on interference that might impact on the integrity and trust of the public in the outcome of an election. We think of interference as something that can happen across the vectors that I just mentioned, so across mis- and disinformation which is about the electoral process, very importantly—so something that might misinform a voter about how to cast their vote formally in an election, for instance.

It can relate to physical security—intimidation meaning that people can't attend polling places or feel disinclined to participate. It could be foreign interference, which I'll ask my Home Affairs colleagues to speak to in a moment, or it could be a cybersecurity issue that could impact on the integrity of the event. Those are the vectors that we focus on. Interference, from our perspective, means something that would be at a threshold that would impact the actual integrity of the election—when we talk about elections, we're talking about 158 elections in a federal election, and that's very important—or the perceived integrity, by which we mean the confidence of voters in the outcome or the running of the election. I might pass to Home Affairs to speak a little more about foreign interference and the definition of that.

Ms Spencer: Certainly. There does remain confusion around foreign influence and foreign interference. All governments, including the Australian government, seek to influence issues of importance to them, and that can include diplomatic activities, political lobbying, communication activities, disbursements and cultural diplomacy. So foreign influence activities aren't a concern in Australia when they're conducted in an open and transparent manner. Where it's conducted in a way that's respectful of our people, society and democratic systems, it can often contribute positively to democracy.

The challenge and the difference with foreign interference is that it's activities carried out by, on behalf of or in active collaboration with a foreign power that involves a threat to a person or is hidden, dishonest, threatening or corrupting and intended to influence an individual's political rights or undermine Australia's national interest. It's that covert piece. A country openly making statements about what should happen in Australia isn't foreign

interference. It's the covert nature of what's being done. A lot of the work that all the members of the board and the taskforce do is around hardening the environment so that individuals in the community are aware of the threat but are also aware of key parts of our democracy including secret ballot and other aspects to prepare them to have greater resilience in terms of foreign interference.

CHAIR: Ms Gleeson, you mentioned, in terms of interference, the physical security, and you said that, if it were to a point that people couldn't attend or were disinclined to participate—I'm not sure if you've had a chance to flick through each of our submissions that we've received and are now public. It's pretty evident that there was behaviour at plenty of polling booths that has left Australians less likely or disinclined to participate in many respects, be it as an electoral candidate—we just heard from Professor Rubenstein—a volunteer or a voter. Did you receive any referrals or complaints of that nature during the federal election?

Ms Gleeson: The EIAT takes on referrals from a whole range of sources, and the AEC and the EIAT, of course, are very attuned to ensuring that all eligible voters feel comfortable, safe and even enthusiastic to participate in an election. That also extends, as you say, to campaigners and candidates. I might say that the AEC does a lot of work, even outside of the EIAT, to facilitate that. We have many very close relationships with police jurisdictions around the country that are managed nationally but also by our Australian electoral officers in the states and divisional returning officers locally so that we are able to respond quickly to concerns about physical security issues. There were certainly instances where we had issues and needed to involve police, and I might invite my AFP colleague to speak a little more about the work that they do in that space, including the work done in Operation Australis.

CHAIR: Before you do, I want reconcile the definition you gave of 'interference'—the disinclination to participate because of behaviour and physical security at the booths—with the evidence we're getting. The statement says that there was no other interference in the federal election. We've got over 100 submissions, and we'll receive more, that go to that very point, of a disinclination to participate. I want to understand how you reconcile the evidence we're receiving with the statement that there's been no interference?

Ms Gleeson: Understood. I can say that the AEC did not receive reports of individuals saying that they refused to participate on the grounds of their safety. If we had significant reports of that nature, that would be something of interest to the taskforce and the board and something that we would engage with in the EIAT. But your point is an important one in that, as I said, the AEC did receive local reports of people feeling concerned about conduct in some polling places. I don't want to overstate this. Notwithstanding the submissions—and I have seen the submissions—I travelled a lot during the federal election and saw many, many polling places across Australia where there was very civil campaign behaviour, and that's exactly what we want to see. However, there were pockets, as the AEC mentioned in its appearance before this committee, particularly in metro Melbourne and metro Sydney, where we saw concerning behaviour, and there were instances when the police had to be called. That could be initiated by staff at the AEC, by our polling staff, by our liaison officers or by the divisional returning officers, and it may filter up to our central command centre at the AEC, or it may be initiated by individuals outside of the six metres. As you are aware, the AEC doesn't have jurisdiction outside the six metres, but we have an interest in facilitating a safe space for people to enter a polling place and to participate in the process.

So there absolutely were instances where the police were called or where our staff had to try and intervene to help call for calm so that that access could be facilitated. Hopefully, that's helpful. But it certainly wasn't at a threshold that the EIAT would consider it to have been 'interference'.

CHAIR: What is the threshold?

Ms Gleeson: The threshold is something that means it would compromise the integrity of the election. But I might ask Mr Ryan to speak about the physical security environment that we grappled with.

Mr Ryan: The AFP's role is obviously distinct from the state policing role, where you'd have a response to instances of disturbances or threats against people at polling stations. Our role relates more to providing advice to the EIAT in relation to the vulnerabilities and risks that are associated with ensuring the integrity of the electoral process. For the most part, that relates to the foreign interference piece but also the physical security of parliamentarians and candidates. To that end, we ran Operation Australis25. That ran between 28 March and 3 May and required 600 AFP officers to be involved for a total of about 45,000 hours. This was mostly attributed to the physical security aspects of parliamentarians and candidates in the election.

During the course of that time period we had 51 instances where we had reportable information that required us to not necessarily investigate but triage matters. Of those 51 matters, there were 15 that were considered for investigation in relation to potential offences. Of those 15, there were four matters that resulted in people being

charged in relation to, mostly, threatening behaviour that related to the electoral process. That's a quick snapshot of—

CHAIR: I'm sure there'll be some questions on that. Ms Gleeson, you mentioned disinformation being considered interference, but with a pretty big qualifier about the electoral process—that's doing a lot of work there in that sentence. We've heard evidence from Global Shield this morning, and that sort of didn't have that qualifier; it was just saying that they consider disinformation about electoral matters to be interference in the process. Why do you narrow your scope to disinformation just about the electoral process, rather than about matters that may influence elections?

Ms Gleeson: I'll respond to that in a few ways. You use the word 'influence', and certainly the view of the AEC is that elections are a contest of ideas, and, in that, campaigners are very legitimately trying to influence the public to cast their vote in a particular way. Therefore, the view of the AEC—and you've heard the commissioner speak of this as recently as our last visit with this committee—is that it is not our role to be involved in truth in political advertising or in the content of that contest of ideas. However, it is our role to ensure that there is factual information available and that there is not mis- and disinformation about the process of casting a vote. You'd be aware that there is a section of the electoral act—and I think we've got the chief legal officer in the room—section 329, that makes it an offence to impact the way that a vote is actually cast. That is why we're focused on electoral process. We do a lot of prebunking work and preparatory activity at the AEC, in the lead-in to an election, to harden the electorate to mis- and disinformation, and our view is that that work is really critical. We're evaluating the effectiveness of that work, and we do after every event, but we think that it is highly effective in supporting voters to think about the content that they're seeing about the electoral process. You would be aware that we run the Stop and Consider campaign; we ran that in multiple languages. We also run a disinformation register where we publish prominent disinformation about the electoral process. So we are absolutely staying in that lane. That is the lens that the EIAT use in contemplating mis- and disinformation as a threat vector during the election.

CHAIR: But does it ever cross a line? There is a global example we heard of, in Romania, which I've read about, where disinformation led to a round of voting having to be—a fake image came up and it impacted the electoral process. Would that fall under your current consideration, if the same were to happen here?

Ms Gleeson: I appreciate the nuance here, and I absolutely don't disagree that it's not always a very clear distinction. Now, this is a very fresh example that the EIAT board have not yet discussed, but there was an example in the Irish presidential election just recently that probably goes to this, and I'm happy to invite the chief legal officer to speak a little more about this, if you wish, but that certainly touches on electoral process—that instance of mis- and disinformation—because it relates to whether people turn out to cast their vote. So it's a very complex and dynamic information environment, Chair. The EIAT are really alert to that, and we have many experts from across the Commonwealth who are attuned to that. Monitoring international developments is a really key part of the work that we do outside of elections, because we continue to meet throughout the electoral cycle to monitor international developments, and that informs how we prepare for by-elections and for the next federal election as well.

CHAIR: Deputy Chair.

Senator COLBECK: Thank you, all. In terms of the last election, how many referrals did the taskforce receive from the AEC?

Ms Gleeson: If I may—I know we've got a bit of time—it might be useful to first speak about how referrals work in the EIAT.

Senator COLBECK: I was going to ask about the reporting vehicles and how someone comes into the system. Is there a process of many doors for one place for people to access?

Ms Gleeson: I'm happy to speak about that.

Senator COLBECK: That's pertinent to where I was going.

Ms Gleeson: Yes, of course. The referral process is a really important part of how the EIAT construct operates and has operated since 2018. The EIAT are continually monitoring the electoral environment. This is codified in the EIAT's governance documentation, and our terms of reference and other relevant documentation are publicly available as well. The EIAT meets throughout the electoral cycle, as I've just mentioned, but also at an increased cadence once the writs are issued. The taskforce, the operational construct, meets daily and more regularly during polling. The board meets weekly and more regularly during polling. And we up that cadence very rapidly if it's necessary.

As part of that monitoring that is done, taskforce members can make referrals—so they can come from within EIAT agencies. They can come from media reporting and from public commentary. As you would be aware, the

AEC have a very prominent and comprehensive social media presence. We'll sometimes get messages from the public. It could come from reporting into other mechanisms through taskforce agencies. So there is a whole range—many doors, going to your point, Senator.

Once that is identified, it's discussed in the taskforce setting, and the taskforce will complete what we call a severity impact assessment, which makes sure that the issue at hand is cast against the terms of reference for the EIAT and considered against those threat vectors and those thresholds that I spoke about, and then that is reported into the board. Meanwhile, the taskforce agencies will mobilise and monitor that issue very closely, and keep the board updated. In some instances, as you would know from the election, the EIAT board may choose to make public statements about matters and about referrals.

I'd like to speak briefly about there being a very fine line for our contemplations on what to make public statements on. We have a communications protocol for the EIAT that assists the board in contemplating when it's appropriate to communicate. Now, that might be public statements, it could be briefings or it could be advice to the electoral commissioner. But, in all our contemplations, we are very focused on prompt and comprehensive action but also not seeking to inflame something that may not end up being an issue or drawing attention to something that could be a small issue and thereby amplifying it. So it is a very delicate balance that we seek to strike in the EIAT. But we made public statements on several of the matters that we considered, and we always seek to close and have closed the loop on those so that the public have visibility of how those referrals have been closed.

Senator COLBECK: So there is a public reporting process in respect of the outcomes of the referrals?

Ms Gleeson: The AEC and EIAT website contains media releases and the statements from the EIAT on matters that we have said we are looking into. Yes.

Senator COLBECK: I'll move to something slightly different. Global Shield, in their submission quotes the acting commissioner arguing that the commission doesn't have the regulatory tools to specifically prevent AI from being used to threaten electoral integrity. What tools do you think the commission needs?

Ms Gleeson: I'd just like to be a little bit cautious in this because the commissioner isn't part of the EIAT construct, and therefore I'm disinclined to speak for him. But, as you would be aware, we have spoken a little about this in our submission to the committee. I'm aware of Global Shield's submission to the committee as well. Your question goes particularly to AI. Am I correct?

Senator COLBECK: They talked about identification and utilisation of that technology in the campaign.

Ms Gleeson: Yes.

Senator COLBECK: Their context, if I'm remembering it correctly—I'm not trying to verbal them—was about transparency so that people could see what it was and then make their decisions in relation to how to view what it was they were looking at. For example, we've had experience in the parliament of a submission that was sent to us that was factually incorrect which was utilising AI. The footnotes identified that it was utilised. The subject of the allegations contained in the submission obviously came forward and said, 'That's not true.' A bit of a process to get to the right point, but, in terms of the integrity of the conduct of the campaign, what tools do you think the commission would need to be able to achieve that—in the context of AI?

Ms Gleeson: I'll provide a couple of reflections. I don't want to speak for my colleagues, so I might invite my colleague from the department of infrastructure and communications to join if she also has some reflections on this. DITRDCSA have the policy lead on AI, but we don't have them represented on this construct. In terms of options for the AEC, the commissioner is on the record saying that he is concerned about the environment, and we're very attuned to our regulatory powers being potentially out of step with that emerging environment.

Importantly, the AEC can do things outside of regulatory powers to support the electorate to be as discerning as possible when it comes to content that they engage with during an election. We say in our submission that those targeted efforts are not going to be enough to build resilience to the sort of digital environment that we grapple with in elections. We mention in the submission that the continued evolution of AI will further degrade and complication the information environment around elections. So I think our view is that there is merit in sustained education and engagement throughout the electoral cycle. Our Stop and Consider campaign, for example, only runs during the election period. The committee may be interested in what can be done outside of elections to support that digital literacy and hardening.

The AEC was allocated some small additional funding on digital literacy, and we're evaluating the effectiveness of that at the moment.

When it comes to legislative frameworks, of course, it's a matter for parliament, but, from the AEC's view, section 329—and I'm just keeping an eye on the chief legal officer back here, who will swing in and mop this up if needed—contains the offence for publishing electoral matter that's likely to mislead or deceive voters in relation to the casting of a vote. It's just unclear whether AI generated material would meet the threshold for contemplation by the court, so it's a little untested about whether section 329 is going to meet the need.

I go back to the example that I alluded to before in the Irish presidential election. If something like that hypothetically were to occur in the Australian context—it was a deepfake, as I understand it—at the moment, we would imagine that it would be very quickly identified, and we would work with the platform or platforms that it was on to seek removal of the content. We have had strong engagement with the platforms, as a general comment, with some exceptions—but good and responsive action by platforms to remove content, and we'd record that on the disinformation register.

That's what we'd do within our current powers, but I think the commissioner may be on the record—and I'll clean this up if I get it wrong—from a previous hearing, perhaps Senate estimates, to say that one approach could be to require disclosure of deepfake content in the authorisation statement. That's one option. We've also put in our submission the idea of a potential voluntary code of conduct for political participants and campaigners in an event. It could be that we include a reference to utilisation of artificial intelligence in a code of conduct. So I think there are a number of ways it could be tackled, but I'm more than happy for other colleagues to speak to some of the regulatory challenges or future planning around AI.

Ms Vandenbroek: As you know, there is no regulation in place in relation to mis- and disinformation, but what we do have is the voluntary Australian Code of Practice on Disinformation and Misinformation, which is administered by DIGI and overseen by the Australian Communications and Media Authority, the ACMA, which is a part of our portfolio. There were originally nine signatories when the code came into place in 2021, but in 2023 X was removed from signatory status due to noncompliance. There are now eight code signatories. They have all committed to releasing annual transparency reports about how they deal with misinformation and disinformation, and there are a number of areas that they have to consider in the transparency reports. One of those is developments and initiatives related to artificial intelligence.

In addition to baseline reporting, there are additional opt-in commitments under the code, and one of those is improving public awareness of the source of political advertising carried on digital platforms. To date, four of the code signatories have signed up to that additional obligation, being Google, Meta, Microsoft and TikTok. Those reports are released annually. There will be one released in the first half of 2026, which will cover 2025, including the election period.

So that is something that we will work closely with the ACMA on—analysing what's available through those reports from the eight platforms and the additional reporting from the four to see what might have happened this year that we can take into account in terms of developing any future policy or regulation that relates to misinformation, disinformation and artificial intelligence.

Senator COLBECK: In terms of the platforms and their adherence or otherwise or the roles that they play, I heard last week in Taiwan that all of the members of the ruling political party there, the DPP, had been deplatformed by TikTok. Would that fall into the category of interfering in the integrity of the election campaign? It's a fairly significant platform for communication. If one political party were not able to participate because of the policy of the platform but other parties were still on the system and able to campaign, how would that sit within the structure of the work that you're doing in terms of the integrity of the election?

Ms Gleeson: I'm not aware of the example that you raise—and I might also lean on the chief legal officer here—but the AEC has a deep interest in and commitment to making sure that the information environment is as accessible and equitable as possible. We certainly can't and don't regulate the information environment, but supporting—

Senator COLBECK: It should be a broader question across the entire panel rather than specifically the AT, but it's an activity of concern.

Ms Gleeson: Yes, and it would certainly be something, I imagine—in that hypothetical scenario—that the EIAT would consider and look closely at. Before I hand to others who may wish to chime in, one thing the AEC would do in that scenario in addition to bringing it to the attention of the EIAT—in the unlikely scenario that they weren't already aware—would be to engage with the platforms. It may interest the committee to know that, as has been the case for past events, the EIAT and the AEC meet with platforms to talk through—this is ahead of an election—our expectations, the regulatory environment and processes for escalation if we have concerns about content or platform activity. As I said, they were reasonably responsive, as a general comment, during the election

in considering material and removing it in some instances. So, in the scenario that you've just outlined, we'd certainly be looking to engage with the relevant platform. I might invite other colleagues, if there is anyone who wants to comment on the senator's question.

Senator COLBECK: A particular landmine—I might go to another question. In the context of your conversations with the platforms and the identification or otherwise of AI, someone creating deepfake materials is unlikely to declare or label them—whatever. Are there any conversations about using their technologies, as a part of the platform, around the identification of those materials?

Ms Gleeson: I might take the specific question on notice, but I'm happy to say, as to the conversations with the platforms—notwithstanding changes in how platforms are governed and their policies over recent years, which make engaging slightly challenging in some situations—generally speaking, we've maintained quite healthy connections and open flows of communication. That includes understanding what capability they have to support us in meeting our regulatory obligations—for instance, the availability of advertisement libraries and those sorts of things. It's absolutely part of the discussion with platforms about how we can leverage their capability to help ensure a free and fair election.

Senator COLBECK: Thank you.

Proceedings suspended from 10:59 to 11:15

Senator HODGINS-MAY: [inaudible] considering this could become more serious in an election, do you think that the taskforce currently has the resources and the experience needed to keep up with those changes? If not, what would you suggest could be done to resource it to better respond to those future threats?

Ms Gleeson: As you can imagine, that has certainly been a focus of our discussion in the EIAT since the election. We are still working through what I would describe as our lessons process to contemplate what the future might look like for EIAT. I might start with some reflections and then invite colleagues to also chime in. Our advice to the Electoral Commissioner—and this is a publicly available statement—noted some of the issues that arose in the environment during the election that concerned us. We called out the continually evolving digital communications environment, deteriorating physical security conditions and suggestions of interference in campaign activity. We have foreshadowed some of those in the EIAT's *Election security environment overview* that was publicly released in January ahead of the election. We continue to monitor experiences overseas. All of those things do concern members of the EIAT. So we are very keen to ensure that the construct remains fit for purpose.

While not wishing to speak for colleagues, I think the view is that these challenges will persist into the future. Our view at this stage is that the EIAT remains a really effective and critical construct. You may be aware that similar constructs have been adopted overseas, but Australia has been a bit of a frontrunner with the EIAT construct. It serves us very well with the calibre of the people we have involved. The support from agencies is impressive and has served us really well to date. We have every confidence that the agencies will continue to commit to the year EIAT as the environment shifts and changes.

It's important to mention that, as you would be aware, the EIAT isn't a legislated construct. It's a coordination mechanism. Agencies support it in kind. So we rely on an ongoing commitment from agencies. As I mentioned earlier, it's a significant commitment both in the lead-up to and particularly during an electoral event, when agencies are meeting daily. It may also interest the community the committee to know that we convene for state and territory elections as well. So it's a very significant commitment, and I am very grateful to my colleagues.

My answer is that it is an effective construct, and we are confident that it will hold us in good stead in the future. But I might use this opportunity to also emphasise that electoral integrity is not just for the AEC or the EIAT. Protecting elections is a whole-of-society effort and all participants have a role to play. You will have heard the Acting Electoral Commissioner speak to this effect in other settings. We noted in the advice that the improved awareness of the complex environment by voters and media assisted in servicing things in media and making electors more attuned to their complex environment. We want electors to be mindful and on guard and to consider these factors before they cast their votes. We see that media and civil society play a really critical role in building voter resilience in relation to threats to electoral integrity.

The last thing I will mention before I invite colleagues to contribute, if they wish, is that the AEC is obviously very focused on electoral integrity. We do a lot outside of our work with the EIAT to improve the resilience of the electorate to integrity threats. That includes but isn't limited to the work of our Defending Democracy Unit at the AEC. They carry out a range of tasks, including scanning the environment and understanding developments internationally so that we know what we are up against in the Australian context.

I am happy to speak in more detail about our education and engagement efforts, but I think we mentioned in the AEC's appearance before the committee that we conducted over a thousand education and engagement sessions at the AEC in the lead-up to the election. Many of those were in other languages. We do advertising campaigns. That includes the Stop and Consider campaign. We evolve that based on research for each election. Stop and Consider was also translated into multiple languages. Our efforts with media and social media include platform engagement, prebunking and monitoring. We do data monitoring and analytics work internally at the AEC to stay attuned to any anomalies in the data during elections. Cybersecurity controls and efforts are an important factor. There's our disinformation register, which I have mentioned, and our security monitoring through the AEC Command Centre.

So the AEC isn't reliant just on the EIAT. We are also always focused on how we can further improve our efforts and be responsive in that dynamic environment. It's a crucial element of augmenting the really important work of the EIAT.

Senator HODGINS-MAY: I am interested if there are things that could be done to support or resource you. I know you said that we are at the front of the pack on this, which is excellent, but are there examples of other jurisdictions that are doing it exceptionally well that we might consider?

Mrs McGuinness: We're probably the newest function added to the board. That was at the start of this year. To your question around resources, the concept of the board means that we bring the resources of our capability. So to sit on the board is both a privilege and a resource demand, but should there be an issue, we are well postured then to bring the network of the National Cyber Security Coordinator, in my case, to the issue. The resourcing issue is an interesting one, but the nature of the board allows us to leverage our capability.

Senator HODGINS-MAY: Does the in-kind nature of this impact at all? Do you appreciate the in-kind nature or would you rather it be legislated? I am just really curious to hear whether you think that that that hinders or helps.

Ms Gleeson: I'm very happy for my colleagues to speak on this. Certainly, from the AECs perspective, there are risks associated and factors that parliament would have to consider if a legislative option was being explored. The beauty of the EIAT construct is that it's leveraging the skills, expertise and legislative remits of the requisite agencies. I think that holds us in really good stead. I mentioned in my opening statement that I was new to the chair role for this election. I have been very impressed by and grateful for the buy-in and support from agencies and colleagues. That includes colleagues at the table but also, as I mentioned, the many people sitting behind those teams. That held us in really good stead. I might invite my colleague from ONI to reflect on that as well.

Mr Swieringa: As you'd know, ONI has an assessment function, but it also has a function in coordinating the national intelligence community agencies. In the context of the EIAT, one of the things we do is try to convene what is called the electoral integrity intelligence forum, which is a way for us to coordinate our inputs into the EIAT board process and into the taskforce. I can't go into any details about specific intelligence matters, but there is an architecture that sits underneath that. It is still, as my colleague has mentioned, individual agencies working within their own legislative remit, but within that is a great deal of flexibility, and having these coordination mechanisms that helps us take advantage of that.

Senator HODGINS-MAY: There has obviously been concern about the conduct of certain third-party groups, including the Plymouth Brethren specifically. That has been highlighted in some submissions. Did the taskforce identify any other domestic or international actors whose activities may have at least attempted to influence the electoral environment, either individually or through campaigns?

Ms Gleeson: I'd bring you back to the EIAT's advice to the electoral commissioner that we didn't identify any foreign interference or any other interference that compromised the delivery of the federal election that would undermine the confidence of the voting public. I might invite my Home Affairs colleague to speak about instances—I think, if I understand your question correctly, you are interested in whether there were signs of interference. I will start with Home Affairs and then invite others to join in.

Ms Spencer: I will speak to the foreign interference aspect. The taskforce did receive referrals of perceived foreign interference and attempted foreign interference during the election. We investigated those thoroughly, and none constituted foreign interference that compromised the delivery of the federal election. There were probably two main referral groups. One would be foreign influence. And, as I said, that is a difficult distinction for a lot in the community; where someone is being open and asking people to vote in a particular way, that isn't foreign interference. That was one aspect.

The other was attempted foreign interference. Where we see that is with something like mis- or disinformation on a foreign website that got low or minimal impact in Australia, or low traffic from Australia. So mis- and

disinformation didn't have a significant impact. On 22 May, the department did issue a public statement in relation to one of these referrals, and that's on the public record.

Ms Gleeson: If we have time, I would invite AFP to reflect on this. I think you mentioned domestic groups as well. Was there anything you wanted to add?

Mr Ryan: As was noted, obviously there were no identified foreign interference matters. Senator, going to your last question, the AFP is well-placed to deal with these types of matters. It's a business-as-usual construct for us in relation to our cyber command, but also our taskforce with ASIO in terms of espionage and foreign interference. It obviously just goes into a heightened state around elections to ensure that we can feed into the relevant boards and taskforce. The types of offending that we have seen are more related to threats and state based offending, rather than anything more malicious from state actors or anything of that type.

Senator HODGINS-MAY: We have established that the AEC has limited powers with respect to regulating the truth of electoral advertising, but this is still obviously a threat to electoral integrity. How does the taskforce navigate this? Do you have any thoughts on how we could strengthen regulation of misinformation?

Ms Gleeson: I might invite my colleague from the Department of Finance to join us to add some reflections on this one. and I invite Home Affairs to reflect as well. As I outlined earlier, the AEC is very focused on electoral process. Certainly, when it comes to foreign actors, we're alert to the blurry line between mis- and disinformation more generally. It's certainly a factor in the EIAT's considerations, but I've offered some reflections on, and our JSCEM submission from the AEC goes to, some potential options for JSCEM to consider. I'm happy to speak to those if needed, but they're in the AEC's submission. I'll invite the Department of Finance to reflect.

Mrs Atkinson: You might be aware that, in the last term of parliament, the government introduced a bill on 18 November which was called the Electoral Legislation Amendment (Electoral Communications) Bill. The bill was intended to do two things. One was to regulate or require authorisation information around the use of AI generated material. The other one was relating to truth in political advertising. That aspect of it would have related to written statements purporting to be factual but which were in fact inaccurate or misleading to a material extent. Those provisions were based around an earlier recommendation of this committee.

The truth in political advertising provisions would have been regulated by an electoral communications panel. That panel would've comprised a chair and up to 14 members appointed by the Governor-General to effectively receive complaints about potentially misleading information and to determine the accuracy or material inaccuracy of those. The panel would've conducted investigations and been empowered to issue requests or directions for redaction or change of particular material. Obviously that bill lapsed with the last parliament.

Senator HODGINS-MAY: Thank you. I think I'm out of time.

CHAIR: Mr Wilson.

Mr RICK WILSON: My initial question is to Ms Gleeson, but I'll extend it to the rest of the panel. There seems to be a focus by this committee on the Plymouth Brethren Christian Church and the people that volunteered for various campaigns. In my notes here—and I've read all 91 submissions and the paperwork, and these notes reflect those complaints—there are accusations that include an excessive number of campaigners attending polling booths. Campaigners verbally intimidated campaigners and voters, and the campaigners occasionally engaged in inappropriate behaviour or heated arguments. Even in my very sleepy electorate of O'Connor, it is not unusual that people from the various political parties engage in argy-bargy and so on at the polling booths. My question to Ms Gleeson is: what is the threshold for the Electoral Commission to investigate or sanction or otherwise Australian citizens partaking in the democratic process?

Ms Gleeson: Again, I'll look over my shoulder to the chief legal officer to swing in if there's additional information or if he wants to correct me on anything. Under the Commonwealth Electoral Act, the Australian Electoral Commission's remit ends at the six-metre zone. Outside of that, where campaigners operate, is not the jurisdiction of the AEC. However, for example, the Electoral Commissioner did write to campaigners during the election—

Mr RICK WILSON: Can you clarify that—individual campaigners or registered third-party groups?

Ms Gleeson: One of my colleagues may be able to locate the exact audience of the letter from the Electoral Commissioner. My recollection is that it was written to all candidates, but I'll confirm that shortly. In that letter, the commissioner outlined the importance of civility in Australia's electoral processes and in the contest of ideas. He acknowledged that an election is a contest of ideas, that there's robust exchange and that that's important but that civility and facilitating voter and campaigner access were also very important. Although our regulatory powers end at the six-metre mark, our interest in the environment is absolutely there. The AEC does what it can to

advocate for that civility. I mentioned—and I won't mention them again unless you'd like me to—some of the products the EIAT prepared in advance of the election, and the work the AEC does around civility and calling for calm in the contest.

We have limited regulatory powers to work with here. If there was a significant issue outside the six metres, it would be something we would work with the AFP on very closely. As I said earlier, there were instances where divisional returning officers or Australian electoral officers dealt with police locally or at a state level in order to call for calm. We regret that having to be the case, but it's the reality of the contest of ideas.

Mr RICK WILSON: Would you consider an optimum number of volunteers on a polling booth as something you would investigate or take a dim view of?

Ms Gleeson: It's an interesting question. There are benefits and disbenefits of those sorts of models. The committee would be aware there have been attempts at different models in states across the country. I'm not sure, off the top of my head, whether there are restrictions on the number of campaigners in other state—

Mr RICK WILSON: How would any regulation of that gel with our implied right to political freedom?

Ms Gleeson: I'm disinclined to head into that territory, which is something the commissioner would be better equipped to speak about, but that would be one of our concerns. The AEC has a very important job to do during the election to facilitate the election process, and additional regulatory powers outside of the six metres would then require additional resources to support managing that. That's a matter for parliament, but it's something the committee needs to be alert to.

Mr RICK WILSON: Let's, for the sake of argument, theorise that this committee came up with a recommendation to ban a particular group of people from attending polling booths. How would you implement that? Can you see a world where people have to declare their religion or their particular church? Is that something you could see the AEC getting involved in?

Ms Gleeson: I'm disinclined to answer that, I'm sorry. I'd rather not deal in a hypothetical along those lines, except to say that, as the AEC said previously, legislation and the AEC's regulatory powers are absolutely a matter for parliament. There would be, I would suggest, some significant challenges. I'm more than happy for Finance colleagues to chime in as well if there's a view.

Mrs Atkinson: I would echo Ms Gleeson's sentiment. The AEC's powers in the Commonwealth Electoral Act are finely balanced from a constitutional perspective to ensure that any encroachment on the freedom of political communication is proportionate, but it is ultimately a matter entirely for the parliament to establish what it thinks is necessary and appropriate.

Mr RICK WILSON: Thank you.

Ms Gleeson: Just to tidy up: my colleagues have clarified the letter from the commissioner I mentioned. We did two media releases—one on 31 March around lawful and respectful campaigner behaviour, and one on 1 May specifically about behaviour in early-voting settings like prepoll voting centres. A number of individual letters were sent to candidates in electorates where we had, either through media reporting or complaints, seen there was a particular issue around campaigner behaviour that warranted dedicated correspondence outside those more general media releases.

Mr RICK WILSON: Are you going to make those particular letters available to the committee?

Ms Gleeson: Yes, I think that should be fine. We can take that on notice.

Mr NEUMANN: I noticed your report, I think, in January this year. You haven't made a submission to this inquiry. I want to concentrate on the range of complaints about behaviour at prepoll and polling booths in various divisions. Ms Gleeson, you said that you travelled around a lot of polling booths and prepolls during the campaign. You said, overwhelmingly, in your evidence today that things went okay, but that there were—the word you used was 'pockets'—pockets of difficulties. Can you explain to us what you observed in terms of those pockets where there were difficulties.

Ms Gleeson: In my comments about travelling around, I certainly don't mean to intimate that my observations are the source of truth here. In my capacity as the national election manager, I try to travel around and engage with staff to understand how polling is going. I had the privilege of going to your electorate, Mr Neumann, and the electorates of others around the table and across all states and territories. In many instances, I saw the calm, civil behaviour that, in my 16 years at the AEC, I have become accustomed to, with the waft of sausage sizzles, cake stalls and all those lovely things that I love about Australian elections.

But then there were electorates where you could just feel that the temperature was higher. As the commissioner has shared in his comments to this committee, that was unusual, from our perspective, and is concerning. It wasn't

terribly surprising. In the EIAT, you would have seen, I think you mentioned, in our products in January, foreshadowed the physical security risks that we saw could arise in the federal election. We're certainly disappointed to hear of it in those pockets that I mentioned. As you've seen in submissions and heard in other evidence, we're not aware that it discouraged people from having their say. We did everything that we could to make sure that people felt safe and to be prompt in our engagement with local police where needed. It was challenging for some of the divisional returning officers and the AEOs who were managing those polling locations. I think they did an exceptional job in some challenging circumstances.

Mr NEUMANN: Ms Gleeson, you said you came to my electorate. Did you come during the prepoll time?

Ms Gleeson: I would need to take that on notice and find the exact date that I was there. I spent most of my time with the staff when I visited your neck of the woods, Mr Neumann.

Mr NEUMANN: The evidence you've just given is completely at odds with my observation and the experience of people at Ipswich South, Ipswich and Ipswich North prepoll booths, which were very aggressive. There was significant physical intimidation. There was much shouting and abusing of people and, indeed, on occasions, violence towards people. Yet your evidence today said that that wasn't the case. Your evidence was limited to the fact that there were problems in urban Melbourne and Sydney. But the evidence we've got, as the chair said, in the submissions and from the observations of many people in this committee—including Senator Mulholland, who I'm looking at, who came to my electorate and went to those prepoll booths I referred to—is that that was very widespread. It was not just pockets of difficulties but widespread. The point is they were Exclusive Brethren. I'm just interested in whether you think their activities were beyond 'pockets' and indeed achieved a level of third-party interference domestically.

Ms Gleeson: Just to be clear, I didn't intend to suggest that it was only in Sydney and Melbourne where we saw issues. It was more that, in metro Sydney and Melbourne, the issues that have been discussed were more pronounced and exacerbated. But there were certainly other electorates where we know that this was an issue, and I do know from my engagement with staff at the Ipswich site that there were challenges in some of those voting locations, as you say, Mr Neumann. As I indicate, although it's outside of our regulatory remit, it really disappoints and concerns the AEC because we want voters to feel safe and we want our staff to feel safe in their workplace, and so we're very attuned to those developments.

I think we may have mentioned in the AEC's comments and reflections to the committee at our last hearing that there are some instances internationally of a code of conduct for political participants that goes to some of this, and that could be something that we explore for future elections. I would like to think that all political participants have a vested interest in a civil campaign environment and that there would be enthusiasm for something like that. I'm happy to speak a little more to that, but I know that the commissioner is certainly also interested in the concept of a potential code of conduct to try and remedy some of the challenges that you outline.

Mr NEUMANN: If you monitored any social media, certainly in Ipswich, during the campaign, you would have seen citizens complaining about the conduct and what was happening at the prepolls, and how they felt intimidated by the actions of certain volunteers. Yet you give an optimistic appraisal of what happened during the campaign at a higher level. I'm interested in whether the intention of your committee is to get into a more granular or microscopic—a lower level—engagement. And to what extent do you speak to the presiding officers and the local workers, Ms Gleeson, about their personal experience at polling booth and prepolls?

Ms Gleeson: The short answer is yes, we absolutely do. At the AEC there is a very effective chain of command, if you like, from the presiding officers in polling places and prepoll-voting centres up through their liaison officer, who is a person who has several voting centres allocated to them to monitor, through to the divisional returning officer and then all the way up to me as the national election manager and to the electoral commissioner.

We have governance constructs at the AEC where our national election delivery committee meets daily during the election. All Australian electoral officers join that meeting, and there is space for them to make sure that they're sharing information about threshold issues on the management of the election during those meetings. That way, we can hear about the experience and feed it back through our EIAT colleagues if necessary, or, as I said, through engagement with local police, especially during the prepoll period, which is a very dynamic environment that requires a more immediate response. That is handled locally or in our state offices, and then I'm provided advice through our incident management reporting arrangements at the AEC. But we are absolutely connected very closely to the presiding officers and our staff. We provide dynamic information to them through a variety of channels as the environment shifts and provide them with avenues to share their experiences as well.

Mr NEUMANN: This is my final question. You mentioned your experience, Ms Gleeson. In 15 federal elections that I have been associated with in Ipswich, I have never seen presiding officers or electoral staff abused so often by not just voters who are frustrated by polling booth workers handing out for political parties. I want to know: To what extent did you train your staff, or provide counselling, guidance and psychological and psychiatric assistance for your staff?

Ms Gleeson: As I mentioned earlier, the polling place is a workplace for our staff. As you well know, given your significant experience, we rely on 100,000 Australians who are employed temporarily to undertake this work and, frankly, we are asking a lot of them. In a complex, dynamic and changing environment—certainly in the one you just outlined—that is very challenging. I certainly won't sugar coat it. We know through our temporary election workforce survey that—mercifully—the vast majority, over 90 per cent, of that temporary election workforce enjoy the experience and want to return. But we know there is a portion of them who don't want to, who cite things like the pressure and the engagement with the public and other participants. That disappoints us because we want people to get involved and to be part of working for the AEC to deliver strong elections.

We provide access to all our staff to the employee assistance program, which is able to be accessed at any time while they are employed with us, as part of the training that our temporary election workforce receive, which is some online training, some face-to-face training for senior roles and the provision of an election procedures handbook. We talk at length about managing challenging participants, whether that be voters or campaigners or campaign workers, escalation mechanisms and how to ask for support. My view is that's functioning quite well, but we are still in the lessons learned process at the AEC, but we will absolutely seek to improve that as necessary.

Mr NEUMANN: Based on that final question, post the election, have you engaged in a review and spoken to those staff on the ground? And to what extent have you engaged in psychological or social work assistance for those particular staff who have gone through those types of terrible experiences that I and many people around this table observed during the campaign?

Ms Gleeson: I might take on notice numbers of staff who have accessed a service. But as an employer in the Commonwealth, we have mechanisms for people to get access to support promptly as needed, so I am happy to take on notice and provide some more detail, if that is useful. But there is absolutely direct engagement between divisional officers and staff on the ground, and access right through to our central human resources capability in national office that provides support and assistance as needed.

Mr NEUMANN: Thanks, Chair.

CHAIR: Do you have a question or clarification?

Mr BURNELL: Just a point of clarification.

CHAIR: Then I'll come to Senator Mulholland.

Mr BURNELL: On that 10 per cent of the workforce that expressed concern about re-engaging in the future, are those survey results geographically tracked? If so, are those results in clusters or are they sporadically spread across the country?

Ms Gleeson: I just want to clarify that I was being generic in the numbers. We can take it on notice and come back to you on the specifics around the survey, but I'm very confident it was over 90 per cent who said, 'Loved it—want to return.'

Mr BURNELL: The only reason I asked that is that if there are large numbers of people expressing a desire not to re-engage, and they are geographically grouped closely together, then you've got hotspot issues.

Ms Gleeson: Yes. I'm happy to take that on notice. We had a huge response to what we called our TEW—temporary election workforce—survey. I want to say it's over 30,000 responses, so it is very much statistically valid. There were really great results on many fronts, but there is some further analysis that's being done now to go to some of those questions. I will, after this, check about whether we've got some geographic analysis built into that, and I am happy to respond on notice.

Mr BURNELL: Thank you.

CHAIR: It might be worthwhile to go through that in an inquiry—

Ms Gleeson: Yes.

CHAIR: not a session on Friday afternoon after a sitting week—or Friday morning, maybe. Senator Mulholland.

Senator MULHOLLAND: I want to circle back on some of the topics that have been raised by some other members of the committee. In particular, you've given evidence today about the regular meetings that you're having throughout an election period. You're keeping an eye on what's going on at booths and on emerging trends. What is the threshold, for the taskforce and the commission, for when the presence of people or activity that you are seeing at a polling booth would cause concern to the taskforce?

Ms Gleeson: That's slightly difficult to answer. Perhaps I'll speak a bit about referrals to get us going, and you can give me a read on whether I'm being helpful. As I mentioned earlier, we get referrals to the taskforce from a range of sources. It could be that there's a media report that indicates that there are problems at a particular booth, and the AEC, for instance, might make a judgement that that's at a threshold where we want the taskforce to be aware. There is very open exchange in the taskforce and the board about how the election is progressing so that we can appropriately pick up on issues that might be of concern.

It's important, though, to emphasise that, while we may make a judgement to take on something as a referral, for something like activity at a polling booth or at booths we need to be dynamic, and that's where the AEC would be considering engagement with local police or directly with the AFP and keeping the taskforce and the board up to speed on how that is tracking so that we're assured that we're responding as dynamically as we can in the moment and not jeopardising the safety or the participation of voters. So we would make a judgement. It would have to depend on the issue. It's a little tricky to talk about hypotheticals, but, in instances where it requires a dynamic response, it would be us dealing with local police, and we'd keep the taskforce and board apprised.

Senator MULHOLLAND: Excellent. You've mentioned hypotheticals. I suppose I'll give you an example. What we have seen since the election has been a number of media reports about the presence of the Plymouth Brethren at multiple polling booths. This was reported by the ABC both on *Four Corners* and online. They spoke with multiple people who are involved in this organisation and who described it—and I quote directly from the ABC—as 'like living in a cult'. You now are very well aware of those media reports about the type of organisation that was heavily present across the country at polling booths. Multiple complaints are now before the commission, and this taskforce would be aware of it. Are you retrospectively looking at that behaviour and asking yourselves questions about why these individuals were there? We've talked about foreign interference today with other evidence and about various actors. It doesn't just have to be political. It can be that other people have motivations, and we're not really clear about what those motivations are, about why these people came out of the woodwork in such large numbers. We're still unclear about why they were there. But there are significant concerns being raised over and over by legitimate media outlets about their behaviour, their treatment of people and what it's like in that organisation for people. Are you retrospectively looking at their presence in our election as being some type of interference? Why were they there? Is this something the taskforce is looking at?

Ms Gleeson: I'm more than happy for board colleagues to chime in. I may ask the AFP to reflect—and others as well, if they wish. I'd be more comfortable speaking more generally about third-party groups and their involvement in the campaign. Certainly, that's—

Senator MULHOLLAND: Sorry, but that's not my question. My question wasn't about third parties. It was specifically about what we're seeing in the media. There have been some really, really concerning media reports from people within this organisation who have described some really horrific things, and we know that they were in a lot of our polling booths. We don't know why. It is really unclear to us why these people were involved in this election. I don't have the ways and means to investigate them. That's not my role, but it is certainly the role of people around this table. I do not want to talk about hypotheticals. I want to talk about what has been in the media, what is before you and what the taskforce and various agencies are looking into. That is my question. It's not hypothetical. It is a specific question.

Ms Gleeson: Understood. To answer your question more directly, then, I'll speak from the AEC's perspective and then ask board members to also speak, if they wish. Noting that the AEC's regulatory powers don't extend beyond the six meters, there are, to the best of my knowledge—and I'm looking at the chief legal officer—not investigations in relation to brethren campaigning activity. I'll just ask the chief legal officer.

Mr Johnson: For someone who is participating or engaging in campaigning, there always is that issue about, firstly, whether they're communicating electoral matter that needs to be authorised and, secondly, whether they're donating money or engaging in electorate expenditure. So there is always, for any sort of third party, particularly, for those who we become aware are engaged in campaigning, that notification that is sent out to them saying, 'Be aware of your obligations in relation to authorisations and donations and electorate expenditure.'

Ms Gleeson: The AFP can perhaps speak to this a little as well.

Mr Ryan: I'm not aware of the specifics, but I think I can talk to some of the issues that we're seeing and the things that we're focusing on now. I don't know whether you had the opportunity to hear our new commissioner, Krissy Barrett, speak about the focus of the AFP at the moment and what we're pivoting towards, particularly around issues affecting social cohesion and some of the groups we're seeing in society now that are affecting that social cohesion.

Sovereign citizens are not necessarily a group. They're usually individuals, but obviously they are of particular concern when you have a look at some of the instances of isolated violence more recently, particularly against police, that sovereign citizens have been partaking in. I guess more of a concern are some of those groups like the National Socialist Network, who we're seeing trying to get into more of a political space. Our understanding is that the NSN are looking at whether they can form themselves as a political party. We do see that their activity, more broadly, doesn't actually hit a threshold in terms of criminal offending, but the behaviour is concerning in terms of them pushing towards the line and a threshold that would be considered not violent behaviour but disturbing behaviour, in terms of what it means for how people feel about their safety and how they feel about the social cohesion aspects.

To that extent, the AFP has formed new teams—the National Security Investigations teams—which are looking more towards those fringe elements that are working within society that are causing concern but not actually meeting the threshold. We're looking at where we can actively work in the preventive and disruptive space to dissuade some of those groups from some of their public behaviours.

CHAIR: I have one question before I pass on to Ms Ryan. I just bring it back to your definition of 'interference' as behaviour or material which would leave people disinclined to participate. That's in the notes I have here. You might like to clarify that on notice. Through what we've seen in the media and, importantly, the evidence that we've received to this hearing, there's an overwhelming theme that the presence of third parties, like the Exclusive Brethren, who are named irregularly—and again I go to the evidence—has left people in a state of clear distress. Would that not trigger an investigation from EIAT, given that there's this constant stream of evidence going to that point of a disinclination to participate in the electoral process, which then goes to matters of election integrity. The integrity of an election doesn't stop six metres from the polling booth. This is something that we're all cognisant of all the time. Where is this line, and is this something that EIAT will consider, given the evidence we've received and given the reports in the media?

Ms Gleeson: To clarify, the EIAT is interested in and cognisant of threats to electoral integrity. They take a variety of forms, as I mentioned. As we said in our advice to the acting Electoral Commissioner, there was not interference in the election such that the integrity of the election was compromised or Australians wouldn't trust the result. The threshold piece is very important. The point I was making about disinclination to turn out is just one of the elements that we would be alert to if we saw a deterioration in the environment.

Really importantly, Australia continues to have solid turnout at elections, and we saw a slight increase for this election, relative to the last one. From an AEC perspective, we're incredibly proud of that, and I'm really confident that the efforts of the EIAT were part of that. There was all of the work that we did in the lead-in, priming the community for the complexity of the environment. There was all of the community engagement that we did, and the translation efforts. We haven't mentioned it yet, but we did briefings with the diplomatic corps. We did comprehensive prebunking with our AEC TV channel. There was significant communication through our website, with the provision of factual information, and all of the engagement with platforms. All of those things help buttress against threats to electoral integrity and efforts at interference. The other thing, which I haven't had an opportunity to mention and should, Chair, is that another thing that puts us in great stead is that we have a manual voting process with pencil and paper and a secret ballot—an Australian idea. Ultimately, it's the voter's choice as to how they cast their vote. That vote is counted in the presence of candidate appointed scrutineers, as you well know, and that is a message that we really emphasise to the electorate as well—that, regardless of the various pieces of communication coming their way, their vote is their choice. That is an incredibly important feature of our democracy that I think has helped buttress against the deteriorating environment that we've seen.

CHAIR: Dr Ryan.

Dr RYAN: I'd like to go to the issue of foreign influence or interference in this election. On 28 April, the *Sydney Morning Herald* reported that people associated with the Chinese Community Party were directing people to work on my campaign in Kooyong. Members of the Liberal Party then commented publicly that, if these allegations were confirmed, they would constitute an act of foreign interference in our democracy and called for an investigation on the matter. I immediately referred that matter to the AEC and did not hear a word back from them, despite several requests for clarification on progress of the investigation, until 5 August. Could I ask the

panel whether they feel that the potential for foreign interference, or allegations around that, could, as you've identified as your threshold for concern, compromise the integrity of an electoral process?

Ms Gleeson: Thanks for the question, Dr Ryan. It may assist if I talk through the sequencing of this particular issue. I'm happy to invite colleagues to chime in. Yes, the AEC was made aware of these allegations. There was media reporting, as you say. I note your comment about not hearing back from the AEC. I'd need to take that on notice. That wasn't my understanding, but I'm happy to look further into that.

The EIAT took this on as a referral, and I spoke to the referral processes earlier. Media outlets, at the time, were reporting on video of two people campaigning who've stated that they were directed to vote in a particular way. The media also reported that this was not just limited to Kooyong but also extended to the divisions of Hotham and Menzies. The referral of these suggestions to the EIAT was publicly reported. We had a media release that was put out to advise that the EIAT was looking at this. We make a judgement to do that. I mentioned earlier the fine balance that we're seeking to strike in reassuring the public but not unnecessarily amplifying matters. That decision to put out a media release was made in accordance with our communications protocol. And, yes, you're on the public record as saying that you did engage with the AEC and the Department of Parliamentary Services on this.

The first statement on the matter was released by the EIAT on Wednesday 30 April. It noted that the matter was referred to the EIAT and emphasised key messaging, including the secret ballot process, influence in elections, the difference between influence and interference and the stop-and-consider messaging. The statement was then updated on Thursday 1 May following the broadening of suggestions to several divisions, and then on 22 May the board formed the view that it had no information to indicate that the reported activities constituted foreign interference and the public statement was updated accordingly. To date, this advice remains unchanged.

The question of how the AEC interacts directly with candidates on those matters I would need to take on notice, but I invite my Home Affairs colleague to chime in if there's anything additional.

Ms Spencer: I wouldn't comment further on this in this forum except for the fact that the public statement was raised. It was something that was considered in detail by the taskforce, and that's all operational policy agencies involved in the taskforce. Great consideration was given to it and in the drafting of the media release, and the advice provided that there was no foreign interference.

Dr RYAN: Do you think that that timeframe is acceptable given that there was a federal election held between these allegations and the decision that was released by the agency?

Ms Gleeson: All I can say is that we work as quickly as we can and we're very alert to the dynamic environment, especially when polling is occurring. I'm happy for colleagues to chime in, but rest assured that relevant agencies work as quickly as they can so that we can establish information to a threshold to make a statement.

Dr RYAN: But you understand that those allegations can be and are highly politicised.

Ms Gleeson: Yes. That's part of the reason that the communication about these matters is extremely delicate for the EIAT and the AEC. There is a lot of effort to ensure transparency and dynamism of messaging in a way that provides required reassurance to the public without seeking to get involved in the substance of the allegation or in any way politicise or be involved in political discussion or debate. It's a very fine needle.

Dr RYAN: I understand that, but—let me ask you this. Have you reached out to the individuals who were named in these newspaper articles and to the volunteers who were representing the member for Hotham and me on those occasions, who were involved in these reports and who were embarrassed and humiliated by the reporting around it in the mainstream media?

Ms Spencer: We cannot comment publicly on operational matters, particularly around foreign influence and foreign interference, because it does provide information and knowledge about our capabilities to foreign state actors. It is a really fine line. So I won't go into those operational details.

CHAIR: We've just been asked to suggest reforms for domestic and—there have been specific asks by the minister in the terms of reference, so we need some information.

Ms Gleeson: Perhaps we can get that for you in another discussion.

Dr RYAN: Can you provide any assurances to people who are of non-English-speaking background or are Australian citizens who have come from other racial or ethnic backgrounds that their language capacity or their ethnic or racial background will not be used against them as a form of vilification during a political election campaign if they choose to volunteer for candidates in a campaign?

Ms Gleeson: We absolutely want all eligible Australians to feel safe and enthusiastic about participating as either voters or campaigners in the election, and we do lots to facilitate that through all of the AEC's efforts. Hopefully, that provides a level of assurance that it's very important that all communities involved in the election feel at ease to participate.

Dr RYAN: Does the taskforce or any other government organisation, or anyone associated with the AEC, accept any duty of care for candidates or volunteers involved in the campaign, or is your concern primarily with the public? I'm not speaking to the AFP. I have to say that I was very grateful to the AFP for the physical and other support during the election campaign, which was a necessary requirement and very much appreciated. I'm talking about the conduct of the campaign and the potential for it to be psychologically harmful to candidates and also to volunteers—and I think many of us are speaking to concerns about the welfare of our volunteers. Does the taskforce accept that we have a responsibility to look after those individuals?

Ms Gleeson: I'll call one of my colleagues to contribute here, if they wish. I think the short answer to your question, Dr Ryan, is yes. When we consider the challenging environment, we don't just think about voters. Certainly from the AEC's perspective, the involvement of candidates, campaigners and scrutineers is fundamental to the integrity of elections. We can't have elections without those participants as well. So there are practical considerations around duty of care when it comes to voters and scrutineers entering AEC premises, for instance, and making sure that they're safe environments for them to operate in. But, more broadly to the point I think you're making, unless colleagues want to correct me, the EIAT is absolutely interested in the ability of campaigners and volunteers et cetera to participate in a general sense, and that goes to the work that Mr Ryan spoke about earlier around Operation Australis and the safety of high office holders and campaigners. So, yes, it absolutely is a factor.

Dr RYAN: Just to editorialise slightly, it felt like, to a significant degree, at least to the people who were involved in the campaign that I was involved in in Kooyong, that duty of care seemed to extend to a six-metre line and not beyond that, and that that will have a significant and material effect on people's decisions on whether or not to engage in future Australian election campaigns.

Ms Gleeson: I'll just add briefly that, yes, from a regulatory perspective that is the reality. As I mentioned, we have 100,000 mums, dads, brothers, sisters and neighbours working on polling booths who we must provide clear advice to on their responsibilities and where they start and finish, and, per our current regulatory construct, that is the six-metre line. But I appreciate the point that you're making, Dr Ryan.

Ms CAMPBELL: I will direct my questions to Ms Spencer. I was listening earlier to your supplementing of the chair's question to Ms Gleeson in relation to interference and what that definition looks like. You spoke about the big challenge when it comes to interference is when the activities are hidden and dishonest, and the covert nature of what's being done. So, when we talk about the definition of interference, that's the real concern we have. If a foreign actor was attempting to interfere, what kinds of things would be considered as evidence of interference?

Ms Spencer: That would go to operational matters that I wouldn't be comfortable speaking about in this forum. I would say that open public statements about views on Australian politics, or even if someone explicitly said, 'You should vote for this individual,' if that is explicit in public, that is influence—that is not foreign interference. What we're seeing is that covert nature where it is very difficult to understand where that interference is coming from and how they're operating, which makes it much more challenging to investigate.

Ms CAMPBELL: I understand. So, for instance, if someone was dressing up or altering the way that looked, then that would be an indication of not being an overt and open kind of discussion?

Ms Spencer: I would say it's if they are obfuscating who they're representing or not clear in who they're representing. There are a range of ways in which that can be done, but that's generally the point—that it is covert, that it is not clear that they're representing the interests of a foreign state.

Ms CAMPBELL: Yes, so it's if they were obfuscating who they were. In terms of that, would foreign actors in this kind of scenario be expected to be trained or have specific questions that they would put to people or ways that they would communicate?

Ms Spencer: Again, that's something I'm not comfortable going into detail about in a public forum.

Ms CAMPBELL: I understand. In terms of foreign actors in this space, would they be expected to be organised? In terms of evidence denoting any foreign interference, would we expect them to be organised at all?

Ms Spencer: I think, as with any crime type, there's a whole spectrum of engagement. It runs the gamut, and it's difficult to give specific advice on that.

Ms CAMPBELL: I understand. Thank you. I was going to ask Ms Gleeson and, obviously, understand that Ms Spencer has some limitations in terms of what she can answer. It's clear that obfuscating who people are representing is something that goes to interference and—while the spectrum exists, as Ms Spencer has said—certainly, some organisation might be expected. We know that about foreign actors. What if those actors were obfuscating who they represented, and what if they were organised? What if they were changing the way they appeared? What if they were wearing particular clothes? What if they were acting in a way such that they had questions designed and put to them to be asked of people on polling booths? It seems that we would consider that in the case of foreign interference—that those factors would all go to that. What if those circumstances existed for a third party that wasn't a foreign actor?

Ms Gleeson: I might invite the chief legal officer to join me to navigate that one, Ms Campbell.

Ms Spencer: Ms Campbell, if I may, it's also helpful to remember that core threshold—that it is interference that compromises the election or undermines the integrity of the election as well. That is a key part of our consideration.

Ms Gleeson: Before I ask the chief legal officer to launch in, I think it's challenging to speak to these sorts of hypothetical scenarios, but perhaps I can get Mr Johnson to focus on what sorts of regulatory powers we would have for domestic actors in that situation.

Ms CAMPBELL: Sorry. If it's difficult to consider hypotheticals then we can put it as an actual. We know from reports—or, certainly, it's what we see from reports—that there was an organised body that were wearing clothes different to what they normally would, that were talking to people on polling booths and that were directed to ask particular types of questions or, certainly, given advice as to types of questions they would ask of the people on those polling booths. In that scenario, when what we've heard about interference is clear and that key part of it is the clandestine nature of it, why wouldn't that amount to interference under everything that we've heard in the committee today?

Mr Johnson: Firstly, as I said earlier, the primary regulations in the Electoral Act now are about transparency, so being clear who is communicating and who's responsible for communications. If someone were handing out flyers and the flyers were still properly authorised, that would still be within that, regardless of how they are dressed. We've had these issues with previous campaigns where a major party will dress up in the colours of a minor party to influence, generally, preferential votes and to have those come back, and we've warned parties in those cases that those could be misleading an elector as to how they can vote. That's what the Acting Deputy Electoral Commissioner said earlier, with that power in 329. But that is a very limited power, so that doesn't go to conduct affecting the formation of a voter's intent on how to vote.

The other thing, as was said earlier in evidence from the Department of Finance, is it gets tricky if you're considering moving to regulations to restrict campaigners or people participating. You do then have to take into account the implied freedom of political communication in the Constitution. That is why the regulatory provisions to date primarily relate to that transparency about who's communicating and who's spending and who's donating money, rather than trying to restrict. The only restrictions are in relation to foreign donations, foreign electoral expenditure and foreign participation. That's where the line is drawn in the regulatory sphere at the moment.

Ms CAMPBELL: You said that in the past you had warned people that something might be misleading. Were the parties in such instances during the 2025 election warned, as you have in the past?

Mr Johnson: I'm trying to think of any conduct. I'm recalling conduct from previous elections when we specifically warned major parties when they had campaigners wearing different colours from their own colours.

Ms CAMPBELL: And did you warn people, as you have in the past, during the election in 2025?

Mr Johnson: I'd have to take that on notice, because we had significant engagement. As I said earlier, a lot of our engagement was when we encountered new people or new groups, new entities campaigning whom we hadn't met before. We always started with a warning—if you would call it that—or an educational letter, saying, 'Hey, be aware of your requirements under the legislation to authorise electoral communications and to declare certain donations and electoral expenditure.'

Mr RICK WILSON: Can those letters be made available to the committee?

Mr Johnson: Yes, we can definitely take that on notice—the reason I was just pausing then is I was wondering if we did that in relation to the last election.

Mr RICK WILSON: Thank you.

Ms Spencer: If I could just make a point of clarification, 'foreign interference' is a specific criminal law definition, so it doesn't have a direct reference in terms of interference domestically. It is a specific criminal offence.

Ms CAMPBELL: Can you tell me what the difference is between the definition of foreign interference and domestic interference.

Ms Spencer: There isn't a specific criminal offence of domestic interference. What I'm saying is that the foreign interference I'm speaking about is a criminal definition. There is no equivalent domestically.

Ms CAMPBELL: So if any party or any actor or individual were to undertake interference in an election that would meet all of the thresholds for foreign interference then that would be completely okay to the AEC?

Ms Gleeson: It depends if it's within our regulatory powers. As the Chief Legal Officer said, it wouldn't be if it wasn't captured in our regulatory powers. If it went to the integrity of the election then that would be something that the EIAT would consider and would take appropriate steps on, based on whatever the particular situation was.

Ms CAMPBELL: Do you believe that clandestine action that would meet the test of foreign interference but that is undertaken by domestic players would not be a risk to the integrity of an election?

Ms Gleeson: That's a bit of a hypothetical one, which is very challenging for me to answer. Again, I would bring us back to the statement that the EIAT provided to the commissioner, that there was no interference in the 2025 federal election that compromised the integrity of that election. What you've just outlined would be included in those contemplations. I'm sorry; that's all I can offer. I would bring us back to my earlier comments about the contest of ideas and the creative ways that campaigners can campaign. Influencing a vote is part of what campaigners do, but if it is touches on our regulatory powers then we would absolutely engage with it.

Ms CAMPBELL: At the outset, I think in relation to the chair's question, you talked about interference versus influence—and thank you for giving us clarity around that. You talked about three core things: firstly, mis- or disinformation; secondly, physical security; and, thirdly, cybersecurity. In the context of that, you said that it would have to be something that would impact the actual or perceived integrity of the election. We've talked about that threshold. In terms of interference meeting the threshold, understanding that there's no strict interference legislation as there is with foreign interference, if something was misleading mis- or disinformation, if it met thresholds of physical security, if it met thresholds of cybersecurity, and certainly in the broader context that Ms Spencer has talked about if it hit those issues of being clandestine in nature or misleading, would that be what you would be looking for if you were attempting to identify interference?

Ms Gleeson: Please let me know if—

Ms CAMPBELL: They were the three criteria that you set.

Ms Gleeson: Yes. I mentioned the threat vectors: mis- and disinformation, cybersecurity, physical security and foreign interference. They're the primary threat vectors that the EIAT monitors in order to provide advice to the electoral commissioner on the integrity of the election. Could I ask you to just clarify the question?

Ms CAMPBELL: Taking account of what you said in terms of those threat vectors, if we were going to assess a domestic interference that met the threshold that you spoke about, would you be looking at those three criteria as well whether the clandestine nature of such an actor at a domestic level—would you be looking at those three plus if it was secret or misleading, as you said earlier? Is that what we would be looking for?

Ms Gleeson: Not necessarily. I think it's important to say that the EIAT doesn't have a neat flow chart about, 'If it's this, then go here.' Hopefully it's comforting to the committee to know that we're much more dynamic than that, and agencies will look at available information based on their remits and their responsibilities. So, if we see threats occurring in the lead up to or during an election under those vectors, then we'll go through the referral process that I outlined and leverage the capabilities of relevant agencies to monitor, investigate and, if required under our communications protocol, communicate with whomever we need to. That could be the public; it could be the electoral commissioner. We'll do that as properly as we can, once we have the information of the particular threshold to be confident.

Ms CAMPBELL: If you don't have a definition at that level, if you don't have to look at those things in a flowchart way to identify that those are the criteria that meet the threshold but you do have a threshold of compromising the integrity of an election, how could you possibly ascertain whether the integrity of an election has been compromised? How would you do that?

Ms Gleeson: Importantly, the vectors aren't criteria; they're mechanisms through which integrity could be compromised. It may be useful to use as the example of a referral. This is where I could and may rope in ONI on this particular one.

We had one referral, for instance, that was publicly available on ABC News. They had published an article 'Pro-Russian influence operation targeting Australia in lead-up to election with attempt to "poison" AI chatbots'. The substance of the article was that there were AI chatbots that were utilising internet scraping to spread disinformation relating to the federal election. That was a report, and the task force and the EIAT took that on as a referral. There was prompt exploration of that. There were public statements made about that along the lines that the EIAT was aware and investigating. What we found, and what was noted in the article, was that the task force observed that the web traffic to the site was very low, as was social media amplification of its content, and that then led to a judgement that that did not impact the integrity of the election.

So it's absolutely a case-by-case deep exploration, understanding where this is occurring and who it might impact. And it goes to my earlier point about how it's not just one election; it's 158 elections. We're interested in which electors it's targeting. There's a whole range of factors that would go into those considerations.

Ms CAMPBELL: Is it right to say that there's no objective test for this?

Ms Gleeson: You're saying for domestic interference there's no test? Yes, there's a whole range of factors and considerations, because the environment is so dynamic and evolving, as I've said. In my view, the best thing we can do as an EIAT construct is stay abreast of that environment and leverage the power's knowledge, monitoring capabilities and expertise of relevant agencies to consider and investigate those if needed, when they arise.

Ms CAMPBELL: What is the threshold for you guys in choosing to investigate so that you could look at all those factors that you talked about?

Ms Gleeson: This is where—and this is a little complex—the perceived versus actual integrity comes in. The example I just gave is a good one, because, while we understand that the traffic was extremely low, because there was a media report suggesting that this could compromise the integrity of the election, the very strong view—unless colleagues want to correct me—of the board was that we should absolutely correct the record and provide factual information that reassured the public. We don't want to inadvertently—let's say by being silent on it—allow that to fester and allow Australians to be reticent or lack trust about the election. So, again, it's case by case.

Ms CAMPBELL: But a media report as to whether there had been an impact on the integrity of the election would be given weight when choosing whether to consider something?

Ms Gleeson: It would absolutely be a factor, but certainly not determinative. I'll just check with colleagues as to whether anyone else wants to chime in on that.

Mr Swieringa: I would just add that we were monitoring that website prior to the media report and prior to the reporter in question first reaching out and asking for comment.

Ms CAMPBELL: I note your earlier evidence about your experiences on the booths. I think there was a 12-day voting period. Yes? Yes. About how many booths do you think you went to in that 12-day voting period—polling places?

Ms Gleeson: Me personally?

Ms CAMPBELL: Yes—merely because you led evidence earlier about your personal experiences at those booths.

Ms Gleeson: That was probably just to add some colour and light. Again, I wouldn't place huge weight, and I don't, on my personal experience, except to I guess reassure the committee that as part of my role—I'm not just sitting in Canberra, although that is an important part of my role—I'm also out and about making sure that I'm engaging with staff. I can come back on notice with the number of visits, if that's—

Ms CAMPBELL: No, I'm just looking for a rough number.

Ms Gleeson: Sure.

Ms CAMPBELL: If you went to 10 a day—

Ms Gleeson: During the entire voting period, I would have visited probably 20 or more, but more electorates as well—spending a lot of time with staff at counting centres, because it is the divisional returning officer and state Australian electoral officers who are the best points of direct connection with polling places. I think the commissioner's view is also that it's important for the senior executive to maintain contact and get out and see those.

Ms CAMPBELL: Of course.

Ms Gleeson: And Michael Lynch, sitting next to me, probably did much more than I did. He's out and about as a member of the senior executive team as well, as is the commissioner.

Ms CAMPBELL: In a press release released by the AEC on 28 March you note that there were 7,000 polling places. I note that in terms of your experience on the ground it leaves more than 99 per cent of the booths that existed and polling places there—to go to the wait, for the record of the committee.

The last thing I was going to ask about was this: we've heard evidence that we do lots in terms of the multicultural space. I represent an incredibly multicultural electorate—the most multicultural in Queensland—and I have a diverse background myself. At the last public hearing, I asked about what you were planning going forward, understanding that there were programs in place to try to increase the participation of people from culturally diverse backgrounds. I was wondering if you had any more clarity now as to what the plan is, going forward, to expand that.

Ms Gleeson: Thanks for the question. It's a real pleasure to speak to the work that we do in this space. I think we get better at this, as the AEC, at each election, but there's always more that we can do. I can speak to what we did, and we did more than we've ever done, including delivering over a thousand community education sessions in 27 CALD languages and translating information into 34 CALD languages, which is more than we've ever done before. But going forward, as I mentioned earlier, we're in a process of evaluating how our efforts went. You may be aware, Ms Campbell, from our previous hearing or from other forums, that for this election we delivered a trial of what we call multicultural community electoral participation officers. That was placement of bilingual community electoral participation officers in, I think, 10 electorates.

Ms CAMPBELL: We look forward to it coming to Queensland.

Ms Gleeson: Yes. We chose the divisions based on rates of formality and a couple of other factors. We'll now evaluate the pilot. Without wanting to overstep, I think we found that the CEPO pilot was very worthwhile. Once we evaluate that, we will overlay that with the informality rates from this election. An early sense is that there were some positive impacts, but it's hard to isolate it to that pilot, because we did so many other things as well. So we are digging deeper into what worked and then understanding what we might propose to be rolled out for the next event.

This is where I say that these things are resource intensive. They're very important, but the AEC has to be adequately resourced to do this work, with the appropriate lead-in to the election. It will surprise no-one to know that we can have limited effect if we just engage with a community right on the doorstep of an election. I might invite my Home Affairs colleague to speak on this too, because for this election we engaged, through the community liaison officer network, with Home Affairs as well, and that was incredibly effective. I think it's calibrating the resourcing to achieve the outcomes.

Ms Spencer: We use the AEC materials, but we also use our community liaison network, which has a potential audience of around 75,000 people in Australian multicultural communities. We also had face-to-face meetings with community representatives in the multicultural environment. We provided material, and we continue to provide material, to all new citizens at citizenship ceremonies around the 'stop and consider' in a lot of the electoral information. We also provide information, across our Home Affairs social media accounts, to an audience of around 800,000 followers—again, in culturally diverse environments.

Speaking more to the foreign interference side, we've also done a lot of work with our National Security Hotline, particularly in preparation for the election, so that they're aware of the kind of information community members may use. As I said, foreign interference is not an easy concept, so it is about what words to pick up on and what kinds of things community members may say that should alert the hotline to community interference, and also about giving them reassurance around the secret ballot and the way our democracy works, to deal with some of those concerns around fear of reprisals. There are also the languages that we have available on the hotline.

CHAIR: Thank you all for giving evidence today. I know it's been a long session, and I appreciate your patience. I've only got a couple of quick questions. I do want to go back to the six-metre exclusion zone. I think it's a pinch point within a lot of the frustrations that are experienced by political candidates, AEC staff and, more importantly, the voters of Australia. There is a clear indication that the AEC is reluctant to get involved beyond the six-metre line, but that is where probably 99 per cent of all infractions are occurring—from six metres and beyond. The ability to respond in an appropriately fast manner is devoid in probably 99 per cent of occurrences where there is a perceived breach of political campaigning guidelines.

I note that, in previous hearings, there has been a suggestion that we have a code of conduct agreed to by political candidates. But I do have concerns that that does not necessarily encapsulate third-party actors that have

been known to be present on polling booths. It also doesn't deal with the significant volume of political campaigning material now present at the majority of polling booths across the country. He reason I'm concerned about this is because it's compressing the environment in which voters then have to engage or run the gauntlet to go and cast a vote. I'm interested in your thoughts about how that can be better achieved beyond a bit of wishful thinking that bipartisan sportsmanship will hold in this scenario, because—I'm sorry—I don't have a belief that that will be sufficient. I'm keen to get your thoughts as to what would better aid beyond a code of conduct.

Ms Gleeson: Thanks for the question. On the six-metre pinch point, as you described it, the AEC can only operate within the legislative construct that we have, and, of course, the six-metre rule is a matter for parliament. The AEC would implement whatever parliament wishes. There are other examples in other jurisdictions. You've all seen examples of 100 metres and a whole variation of options. I'm not sure if the Department of Finance or the Chief Legal Officer wanted to speak a little more to those sorts of options. I'm happy for them to chime in if they wish.

In terms of responding, I want to make it clear that, while the AEC is very clear about the six-metre zone being our responsibility, and the polling place being the area in which we conduct our work and that we regulate, we are not blind to what's happening outside of the six metres—quite the opposite. That's why you saw references to campaigner conduct in our submission to this committee—why we, as the EIAT, talked about the risks associated with that to electoral integrity in our January published material and why we took other steps. I mentioned before about the commissioner writing to campaigners, and there's our engagement with police and our deep connections. Notwithstanding your comments about dynamism, I want to thank the staff on the ground, the AEOs, the AFP and local police jurisdictions for what I saw as an incredibly cooperative and dynamic response in challenging circumstances. When every voter is attending within a 12-day period, it's a considerable undertaking, as you appreciate.

I should have also mentioned—this also goes to Dr Ryan's questions before—that, for this election, we launched a campaigner hub, which we haven't done before, and the commissioner wrote out about it, and there was a media release. We haven't done this historically, but we attempted to pull together some information and advice for campaigners—volunteers and candidates—about what it's like to campaign, what your obligations are and the role than campaigners can play in facilitating a civil environment. It talked about things right down to practical considerations about access to toilets in polling places and all that sort of thing.

So we've dipped a toe in the water, and we got some really positive feedback about the campaigner hub, but the AEC is open to parliament's reflections on whether there is a need to change the regulation here—or we will continue, through EIAT and also through the AEC's efforts, to improve the campaigner hub and to continue our close engagement with campaigners, broadly defined. You spoke about third parties; this might be a slight overstep without the commissioner here, but, given the funding and disclosure legislation changes that are coming in the coming year, the AEC will be engaging with more participants than we have historically. That potentially provides an avenue for us to be more closely engaging on some of these matters and pushing the advice about civil campaigning and that sort of thing. So there are things the AEC can do, and does, within our existing remit, but, again, it's a matter for parliament, and the AEC will work with the committee as you explore that further.

Mr BURNELL: My last question is on cybersecurity and interference—probably leaning more towards influence. We saw multiple different ballot-builder applications, or platforms, being circulated throughout the 2025 election. I'm interested to know whether the committee pressure-tests these platforms for validity of truth as to whether or not they are actually a true reflection of the policy input that the user is providing. I understand that there will be a potential discrepancy for accuracy, but whether it genuinely leans to one side, to the left or to the right—is that something that you don't look at? And is it something that you may consider, moving forward—given that, as we move into a voting experience more heavily dependent on social media/technology for a lot of young people, that will be an area that needs a bit more oversight?

Ms Gleeson: Could you explain a little more about the ballot builder?

Mr BURNELL: A perfect example is the ballot builder, the program, which was designed to help people establish their voting intention based on their policy preferences. My experience in my electorate was that, regardless of what policy position you put in, it would skew one way every single time. That, in my view, influences the outcome of voting intention for individuals. I'm interested to know whether or not it does get pressure tested as a matter of course from the committee. If not, why not?

Ms Gleeson: Thank you for clarifying. I'm more than happy for colleagues to chime in here; I'll start. Earlier, I mentioned our Defending Democracy Unit at the AEC. Part of the work that that unit is charged with throughout the electoral cycle, especially in the lead-in, is giving the senior executive information, and also then sharing information with the EIAT as appropriate, on—I'll say this generally—technology platforms that could have an

impact on the integrity of an election. If I can give you one example, we had the team putting search questions and image searches into AI chatbots to see what sort of information voters would be getting out. That's a really important monitoring exercise to understand whether we see any platforms that are providing what we would consider false or misleading information about the electoral process. So, again, I bring it back to—

CHAIR: Those words again.

Ms Gleeson: Yes, those words again—the commissioner will be very pleased! That is the focus, and the work of the Defending Democracy Unit is really critical in that regard. I would have to take on notice about Ballot Builder specifically. It is absolutely ringing a bell, but, as you can imagine, there are many tech platforms and so there will be many that the team will have explored. Because we're engaging so regularly with the EIAT, we would be discussing the findings routinely anyway, but if it's at a particular threshold then, yes, it would be absolutely something that the EIAT would be potentially concerned about and interested in. I might invite any colleagues to chime in.

Mrs McGuinness: I don't think I have any further reflections, Mr Burnell, based on it not being a cybersecurity incident or issue but in fact a technology misinformation/disinformation platform. So I might refer to other operational agencies on the assurance of any of those—

Mr BURNELL: Just for clarification, if you do identify a platform that is operating in such a manner, do you have the ability to force a shutdown of it or issue a cessation notice? How does that work in reality?

Ms Gleeson: I think the answer is no. I'm going to ask the chief legal officer to come forward, because this also strays into authorisation requirements. I think, again, it depends on the circumstance, but we'd be checking whether there is anything within our regulatory remit that is problematic.

Mr Johnson: Yes. We're limited in being able to shut them down, but we would be looking first, because that's influencing or seeking to influence the way someone would vote, so we'd consider that as a site that needs to be authorised and then be looking seriously at potentially contacting who is responsible, if we can identify them. If something like that were on social media and it wasn't authorised, we'd be saying, 'That's electoral matter; it's not properly authorised; it's contrary to the electoral act.' If we couldn't identify a responsible person then we'd be contacting the digital platform and saying, 'Please remove this.'

Ms Gleeson: I mentioned before about the fairly good engagement we have with social media and technology platforms, and we are always seeking to engage with new and emerging platforms. It's not always successful, but there is always that effort, and that's a key part of our readiness activities.

Mrs McGuinness: I was going to offer the same and also that multiple partners, including the Department of Home Affairs and my organisation, engage frequently with platforms in multiple areas.

Mr BURNELL: Is this perceived to be a growing risk area for the potential influence within the voting cycle?

Ms Gleeson: As we say in the AEC's submission, the technology, the digital information environment, is complex and a concern and extremely dynamic, and, yes, it's absolutely a challenge, which is why maintaining the sorts of very lean but capable capabilities, like the Defending Democracy Unit, and making sure there's appropriate investment in our monitoring capabilities, in readiness for elections, is really important—and monitoring developments overseas, as well; that helps us.

Ms Spencer: It's also important to note that we all bring our capabilities to the electoral team, but we also do this on a regular basis, in terms of other national security risks. We're constantly looking at the environment and the regulatory and policy reforms required.

Mr BURNELL: The thing that concerns me with some of these platforms is the fact that the voting window, generally, is only a two-week window; it's very short. It makes it extremely difficult for you to identify the threat and then be able to respond in an appropriate way that mitigates or limits the potential for influence on or perversion of voter intent before we get to the last day of voting.

Ms Gleeson: Yes.

Mr BURNELL: And, without an ability to press a stop button, it makes it extremely hard if you get caught up in the legal back-and-forths. In effect, potentially, you become null and void in your ability to stop any sort of nefarious intent by a third-party actor.

Mr Johnson: If I could say, I think that's exactly right. Regulatory options are really too late. It comes back to points that have been made on the committee today and in other submissions about the importance of civic education, and digital and media literacy—building that capacity outside of an election. So we do that small amount in an election, from the AEC perspective, but it really is a year-round—

Ms Gleeson: And, to reassure you, if I can bring it back to the committee and the whole idea behind the construct, if there were something that compromised or that the EIAT board judged compromised the integrity of an election, we wouldn't wait until the end of an election to advise the electoral commissioner. It is absolutely open to us under our communication protocol to provide that advice as soon as we think that there's been an issue. We move as dynamically as we can within our existing arrangements.

CHAIR: I'm aware of the time. The deputy chair has indicated he has question, and then I've got a few more for you, Mr Ryan, before we adjourn.

Senator COLBECK: Off the back of that last tranche of questions with respect to the vote-building platforms—would they be regarded in the norm as electoral matter and therefore require all of the declarations that would come with electoral matter, including who was responsible for them and those sorts of things? If they're not, what would be the recommendation that might put them into that context? Is there a view on that? I think that's a very good series of questions. Are they, as of a norm, regarded as political matter?

Ms Gleeson: This is where I'll invite the chief legal officer and the Department of Finance—if they have anything else they wish to add. I'll start by drawing your attention to our submission, where we mention some of the challenges in regulating in the current dynamic environment. At the top of that, we say:

Some of the matters for JSCEM consideration include:

a) replacing the subjective dominant purpose test for "electoral matter" with an objective standard …

In there, it highlights some of the challenges in determining electoral matter. Andrew?

Mr Johnson: I think that's a good point that the Acting Deputy Electoral Commissioner has made. There is. The definition of 'electoral matter' is in section 4AA of the Electoral Act. Generally it's communication intended to influence or with the dominant purpose of influencing the way an elector will vote. The definition goes on with a whole bunch of criteria to help consider what the dominant purpose is. Courts have held that that's a subjective test. So, even if objectively, we would look at that and say: 'That looks like electoral matter. That looks like it's trying to influence how someone votes.' A court may disagree with us, or the person who we find is responsible, if we took action, could turn around and say, 'No, we were just doing it for an educative purpose,' for example. It is for the committee to consider and for the parliament and the government to consider whether that could and should be clarified.

CHAIR: Mr Ryan, in your earlier evidence, you mentioned, I believe, concern over the potential for political third-party involvement from sov cits and Nazis. Could you expand on that a little bit more from your perspective within the AFP.

Mr Ryan: Certainly. The commissioner has been quite public on this in relation to the way that we are pivoting back towards this as an issue of threats to democracy and threats to our social cohesion, which is why we've initiated these new investigative teams to look at those—I wouldn't call them 'fringe groups'—emerging groups that are much more public and much more vocal. As I noted earlier, the NSN in particular—we're aware of them dropping flyers and things like that with political aspirations and those types of things. It's the behaviours that they are publicly displaying that give rise to the concern of members of the public about their safety, particularly when you see them marching and protesting and those types of things.

Our concern primarily—if I take it out of the context of the electoral issues—is probably more so in relation to some of these members of these groups and the ideologies and the extremist ideologies that they have and whether that is something that evolves into extremist violence and those types of things. That's where our primary concern is in that regard.

CHAIR: What would you consider a threat to democracy? Going back to definitions, where does that pique your interest in the—

Mr Ryan: I think that, if you look more broadly at sovereign citizens in terms of undermining the legitimacy of institutions and those types of things—is really where our focus is in terms of ensuring that that threat is mitigated as much as possible. I'm talking more generally about domestic issues. Obviously there are other concerns that we do have in terms of foreign actors and foreign interference that undermine those things as well. It's a bit of a two-speed process, where we're actively working on international or global threats but also domestic threats.

CHAIR: You mentioned 45,000 hours and 600 officers at the 2025 election. That seems like a large amount of resources. Is that bigger than previous elections? Are you able to go into the reasons why you allocated that?

Mr Ryan: I don't think it's any more substantial than previous elections and it's not something that we take extra budget for. We do it within our existing budgetary envelopes. I can say that there was a 17 per cent increase

in the threats against parliamentarians and candidates within this election period compared to 2022, and about 70 per cent of the things that we investigated in this regard related directly to either personal threats to parliamentarians and candidates or the use of social media platforms to make those threats—even if in a veiled way. A lot of the work that we do relates to Commonwealth officials being threatened or carriage services being used to threaten, harass or menace. That's the bulk of the work that we've looked at, outside of the physical security overlays that we have put in place for the physical protection of parliamentarians and candidates.

CHAIR: Thank you all for your attendance here today. If you've been asked to provide any additional information, please forward it to the secretariat by 14 November. You'll all be sent a copy of the transcript of your evidence and will have the opportunity to request corrections and transcription errors.

Committee adjourned at 13:12